MODULE 1: THE MAKING OF THE INDIAN CONSTITUTION

Comprehensive Study Notes — Beginner-Friendly Edition

SECTION A: BASIC BACKGROUND — WHAT IS A CONSTITUTION?

Before diving into the Constituent Assembly, it is essential to understand what a Constitution is and why it matters.

What is a Constitution?

A **Constitution** is the **supreme law of a country**. It is a set of fundamental principles and established precedents according to which a state or other organization is governed. Think of it as the **"rulebook"** or **"operating manual"** of a nation.

A Constitution performs several key functions:

Function	Explanation
Establishes Government	It creates the different organs of government — the Legislature (makes laws), the Executive (implements laws), and the Judiciary (interprets laws).
Defines Powers	It specifies what powers each organ of government has and what limits exist on those powers.
Protects Rights	It guarantees certain fundamental rights to citizens that the government cannot violate.
Sets Principles	It lays down the basic values and ideals the nation stands for — like justice, liberty, equality, and fraternity.
Provides Stability	It ensures that even when governments change, the basic framework of the country remains stable.
Resolves Conflicts	It provides mechanisms to resolve disputes between different levels of government (Centre vs. States) and between the government and citizens.

Types of Constitutions

Type	Description	Example
Written Constitution	The Constitution is codified in a single document (or a few documents) that can be read and referred to.	India, USA, France
Unwritten Constitution	The Constitution exists in customs, conventions, court decisions, and various laws — not in a single document.	United Kingdom
Rigid Constitution	The Constitution can be amended only through a special, difficult procedure (harder than passing a normal law).	India (partly rigid)
Flexible Constitution	The Constitution can be amended as easily as any ordinary law.	United Kingdom

India has a written, partly rigid, and partly flexible Constitution. Some parts can be amended easily, while others require special majorities and even approval from State legislatures.

Why Did India Need a Constitution?

Before independence, India was governed by the **Government of India Act, 1935** — a law passed by the British Parliament. This was not a Constitution made by Indians for Indians. After independence, India needed its own Constitution because:

1. **Sovereignty:** A free nation must make its own supreme law, not be governed by laws made by a foreign power.
2. **Diversity:** India is incredibly diverse — multiple languages, religions, cultures, and traditions. A Constitution was needed to hold this diversity together.
3. **Justice:** Centuries of colonial rule and deep social inequalities (like the caste system) required a Constitution that promised justice and equality.
4. **Unity:** With 565 princely states and British provinces, a Constitution was needed to create a unified nation.
5. **Democracy:** India wanted to establish a democratic system where the people's will would govern.

TOPIC 1: FORMATION OF THE CONSTITUENT ASSEMBLY — REPRESENTATION AND STRUCTURE

1.1 What is a Constituent Assembly?

A **Constituent Assembly** is a body of representatives specially convened to **draft, debate, and adopt a Constitution** for a country. The members of this assembly are called "constituent members" because they constitute (create) the Constitution.

The Constituent Assembly of India was formed to replace the Government of India Act, 1935 with a Constitution made by Indians, for Indians.

1.2 Historical Background — The Road to the Constituent Assembly

To understand how the Constituent Assembly came into existence, we need to trace the journey from colonial rule to independence.

Phase 1: Early Constitutional Reforms (1858–1909)

After the **Revolt of 1857** (also called the First War of Independence), the British Crown took over the governance of India from the East India Company through the **Government of India Act, 1858**.

Over the next decades, several reforms were introduced:

Year	Reform	Key Feature
1858	Government of India Act	Crown took over from East India Company; Secretary of State for India created
1861	Indian Councils Act	Indians were allowed to be nominated to the Viceroy's Council
1892	Indian Councils Act	Increased Indian representation; councils could now discuss budgets
1909	Indian Councils Act (Morley-Minto Reforms)	Introduced **separate electorates** for Muslims — a controversial decision that divided Indians along religious lines

The Morley-Minto Reforms (1909) are significant because they introduced the idea of separate electorates based on religion, which became a major source of division in Indian politics.

Phase 2: Growing Demand for Self-Government (1919–1935)

As the Indian National Movement gained strength, the British introduced more substantial reforms:

Year	Reform	Key Feature
1919	Government of India Act (Montagu-Chelmsford Reforms)	Introduced **dyarchy** in provinces — some subjects were given to Indian ministers, others remained under British control
1935	Government of India Act	Introduced **provincial autonomy**; provided for a federal structure (which was never fully implemented); this Act governed India until independence

Phase 3: The Demand for a Constituent Assembly (1934–1946)

The idea of a Constituent Assembly was first raised by **M.N. Roy** in 1934. The **Indian National Congress** formally demanded a Constituent Assembly to frame India's Constitution in **1935**.

Why did Indians demand a Constituent Assembly?

1. The Government of India Act, 1935 was imposed by the British — Indians had no say in it.
2. Indians wanted a Constitution that reflected their aspirations, values, and needs.
3. A Constituent Assembly would be a sovereign body — not controlled by the British.
4. It would represent the diverse voices of India — different communities, regions, and ideologies.

Phase 4: The Cabinet Mission Plan (1946)

The **Cabinet Mission Plan** is the most important step that led to the formation of the Constituent Assembly.

Who was the Cabinet Mission?

In **February 1946**, the British Labour Government sent a three-member Cabinet Mission to India to work out a plan for transferring power from British rule to Indian leadership. The members were:

Name	Position
Lord Pethick Lawrence	Secretary of State for India (the senior member)
Sir Stafford Cripps	Chancellor of the Exchequer
A.V. Alexander	First Lord of the Admiralty

What did the Cabinet Mission Propose?

The Cabinet Mission Plan, announced on **16 May 1946**, had several key proposals:

1. **A Constituent Assembly would be formed** to draft India's Constitution.
2. **Elections would be held** in the provincial assemblies, and these assemblies would elect members to the Constituent Assembly.
3. **India would remain united** as a single federation (not partitioned into India and Pakistan).
4. **Provinces would be grouped** into three groups (Group A: Hindu-majority provinces; Group B: Muslim-majority provinces in the northwest; Group C: Muslim-majority provinces in the northeast).
5. **A weak Interim Government** would be formed to handle day-to-day administration until the Constitution was ready.

Both the Indian National Congress and the Muslim League initially accepted the Cabinet Mission Plan, but disagreements soon arose over the grouping of provinces and the composition of the Interim Government.

1.3 Formation of the Constituent Assembly — The Process

Step 1: Elections to Provincial Assemblies (February 1946)

Elections were held in the 11 British Indian provinces. These elections served **two purposes**: - To elect members of the Provincial Legislative Assemblies. - To determine who would elect members to the Constituent Assembly (since Constituent Assembly members were chosen indirectly).

Results of the 1946 Provincial Elections:

Party	Seats Won	Seats Available
Indian National Congress	92 out of 158	In provinces where it contested
Muslim League	442 out of 495	In Muslim-reserved seats
Others	Remaining seats	—

The Muslim League's massive victory in Muslim-reserved seats strengthened its claim that Muslims were a separate nation and needed Pakistan.

Step 2: Election of Constituent Assembly Members (July 1946)

Members of the Constituent Assembly were elected **indirectly** by the members of the Provincial Legislative Assemblies.

Method of Election: - **Proportional representation** by means of the **single transferable vote** system. - This meant that each community's representation was proportional to its population, and voters could rank candidates in order of preference.

Step 3: Composition of the Constituent Assembly

Original Strength (before partition):

Source	Seats
British Indian Provinces	292
Princely States	93
Total	**389**

After Partition (1947):

Source	Seats
India (provinces)	229
India (princely states)	70
Total	**299**

Note: The seats for Pakistan (both provinces and princely states) were separated after the partition of India in August 1947.

Step 4: Allocation of Seats by Community

The seats in the Constituent Assembly were allocated to different communities as follows:

Community	Seats from Provinces
General (mainly Hindus)	206
Muslims	78
Sikhs	24
Indian Christians	1
Anglo-Indians	1
European Chamber of Commerce	1
Total (Provinces)	**311**

Princely States were to send **93 members** (later reduced to 70 for India after partition).

Step 5: The Muslim League Boycott

On 29 December 1946, the Muslim League withdrew its members from the Constituent Assembly in protest. The League argued that the Assembly did not reflect the will of Muslims and that Pakistan should be created separately.

Impact of the Boycott: - The Assembly proceeded without Muslim League members. - This meant that for the first year, the Constituent Assembly was dominated by the Congress. - After partition in August 1947, Muslim representatives from the provinces that remained in India joined the Assembly.

1.4 Structure and Organization of the Constituent Assembly

The Constituent Assembly was not just a body that met and debated. It had a formal structure with officers, committees, and rules of procedure.

Officers of the Constituent Assembly

Position	Name	Role
Temporary President	Dr. Sachchidananda Sinha	Presided over the first meeting (9 December 1946) until a permanent President was elected
Permanent President	Dr. Rajendra Prasad	Elected on 11 December 1946; presided over all subsequent meetings; later became the first President of India
Deputy President	H.C. Mookherjee	Assisted the President and presided in his absence

The Three Roles of the Constituent Assembly

The Constituent Assembly performed **three different functions**:

Role	Description
1. Constituent Body	Its primary function — to draft and adopt the Constitution of India
2. Legislature	It acted as the provisional parliament of India, passing laws during the transition period (1946–1950)
3. Deliberative Body	It discussed important national issues, policies, and principles

Committees of the Constituent Assembly

The Assembly created several committees to divide its work. These committees are discussed in detail in Topic 2.

1.5 The First Meeting (9 December 1946)

The first meeting of the Constituent Assembly was held on **9 December 1946** at the **Constitution Hall** (now Central Hall, Rashtrapati Bhavan, New Delhi).

Key events of the first meeting:

1. **Dr. Sachchidananda Sinha** was elected as the temporary President. He was the oldest member of the Assembly, and this followed the convention of giving the senior-most member the honour of presiding over the first meeting.
2. **Dr. Rajendra Prasad** was elected as the permanent President of the Constituent Assembly on **11 December 1946**.
3. The Assembly adopted its **rules of procedure** and set up its **committees**.
4. **Jawaharlal Nehru** moved the **Objectives Resolution** on **13 December 1946**. This resolution outlined the basic goals and values that the Constitution would embody. It later became the basis of the **Preamble** to the Constitution.

The Objectives Resolution (1946) — Nehru's Vision:

The Objectives Resolution declared that:

> "India shall henceforth be a **sovereign independent republic**; that its territorial units shall not be based on artificial divisions unregarding of the wishes of the inhabitants but on the principle of **composite Indianism** or **unity in diversity**; that it shall be a **federal Union** with fully sovereign **Stative States** composing the Union; that there shall be **fundamental rights** for the people, including rights and liberties of **individual, thought, expression, conscience and faith**; that there shall be adequate **safeguards for minorities, backward and tribal areas, and depressed and other backward classes**."

This resolution set the ideological direction for the entire constitutional process.

1.6 Composition of Members — Who Were They?

The Constituent Assembly was a diverse body representing different sections of Indian society.

Political Representation

Party	Members	Key Leaders
Indian National Congress	Majority (about 200+)	Nehru, Patel, Ambedkar, Rajendra Prasad, Kripalani
Muslim League	Initially boycotted; later joined after partition	H.V. Kamath, M. Ananthasayanam Ayyangar
Hindu Mahasabha	Small number	M.A. Ayyangar
Scheduled Castes Federation	Small number	B.R. Ambedkar (later joined Congress)
Independents	Small number	Various regional leaders

Diversity of the Members

The Constituent Assembly included people from diverse backgrounds:

Category	Examples
Professions	Lawyers (Ambedkar, Alladi Krishnaswamy Iyer), journalists (H.N. Kunzru), educators (Dr. Radhakrishnan), administrators (Sardar Patel)
Regions	Members from every province — Bombay, Madras, Bengal, United Provinces, Punjab, Bihar, Assam, Central Provinces, etc.
Religions	Hindus, Muslims, Sikhs, Christians, Parsis, Jews
Languages	Hindi, English, Urdu, Tamil, Bengali, Marathi, Gujarati, Punjabi, and more
Ideologies	Socialists, Gandhians, Liberals, Conservatives, Communists
Genders	**15 women** members including Hansa Mehta, Rajkumari Amrit Kaur, Sucheta Kripalani, Vijaya Lakshmi Pandit, Durgabai Deshmukh

Significance of this diversity: The Assembly was not a homogeneous body. It represented the diversity of India itself, and the debates reflected multiple perspectives and viewpoints.

1.7 Age and Experience of Members

- The **average age** of members was around **45 years**.
- The **youngest** member was **Tankeshwar Pandey** (around 29 years).
- The **oldest** member was **Alladi Krishnaswamy Iyer** (around 78 years).
- Most members had **political experience** from the freedom struggle.

- Many were **experienced lawyers, administrators, and intellectuals**.

1.8 Why Indirect Election?

The members of the Constituent Assembly were not directly elected by the people. They were elected by the Provincial Legislative Assemblies. This was done for several reasons:

1. **Practicality:** Holding direct elections across a vast country during wartime was logistically difficult.
2. **Expertise:** The framers believed that elected representatives in provincial assemblies were better equipped to choose qualified members.
3. **Time:** The British wanted a quick transition, and indirect elections were faster to organize.
4. **Precedent:** This method was used in many other countries for constituent assemblies.

1.9 The Princely States and the Constituent Assembly

The **Princely States** (also called Indian States) were territories ruled by local princes (Rajas, Nawabs, Maharanas, etc.) under British suzerainty. They were not part of British India.

The Challenge: - There were **565 Princely States** of varying sizes — from tiny estates to large states like Hyderabad, Kashmir, and Mysore. - The British had given the princes the option to **join India, join Pakistan, or remain independent**. - The Constituent Assembly needed the Princely States to be part of India for the Constitution to be meaningful.

Resolution: - The **States Committee** (chaired by Sardar Patel) worked to integrate the Princely States. - Sardar Patel, with the help of V.P. Menon, negotiated with the princes to join the Indian Union. - Most princes agreed to join India. Hyderabad and Junagadh were integrated through police actions. Kashmir joined India after a tribal invasion.

TOPIC 2: COMMITTEES AND SUBCOMMITTEES — DRAFTING, ADVISORY, FUNDAMENTAL RIGHTS

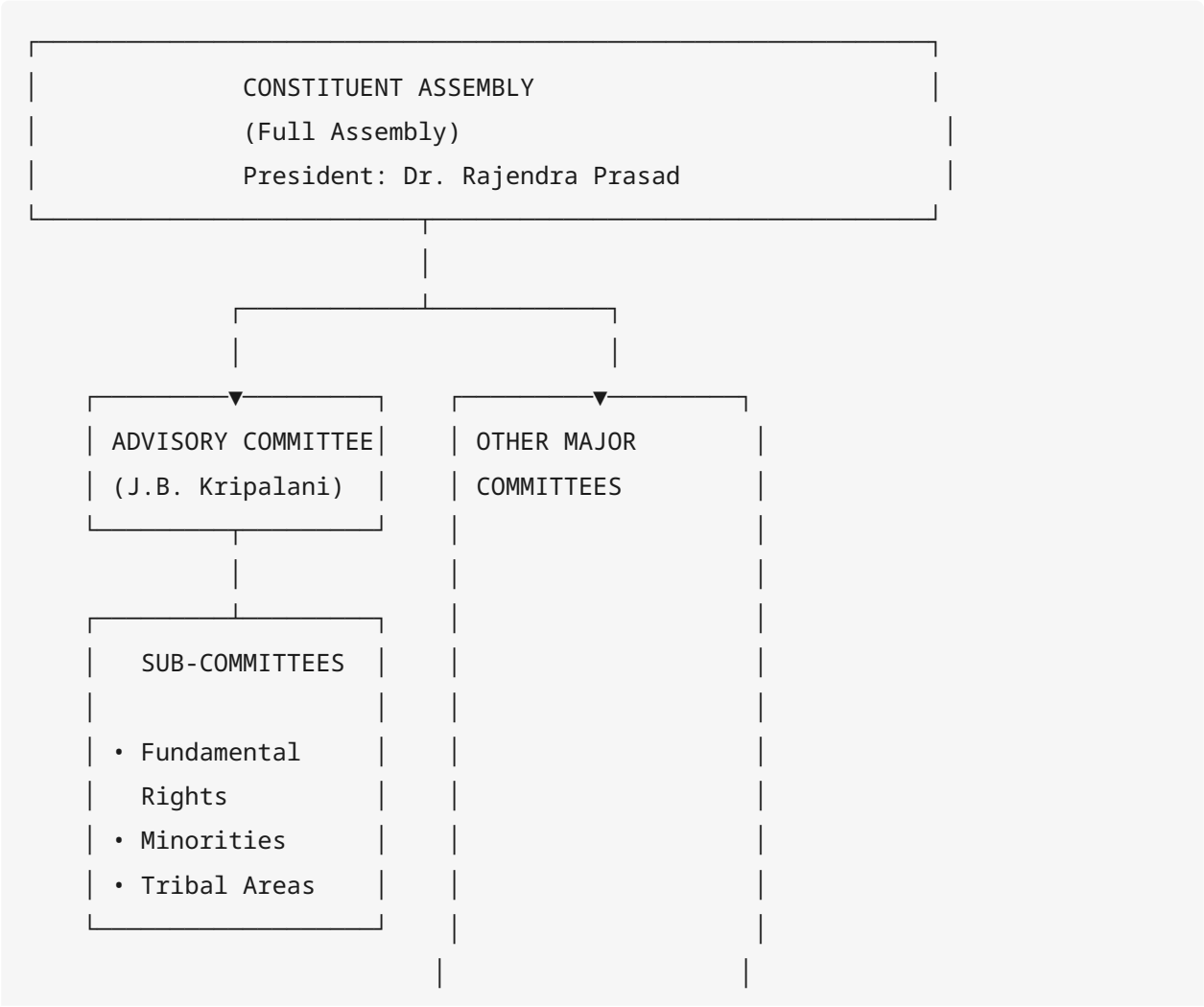
2.1 Why Were Committees Necessary?

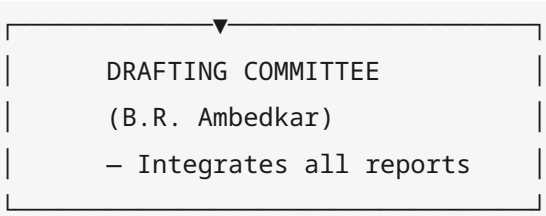
The Constituent Assembly had an enormous task: to draft a complete Constitution for a vast, diverse, and complex country. The work could not be done by the full Assembly meeting together all the time. Committees were essential for several reasons:

Reason	Explanation
Division of Labour	Different aspects of the Constitution required different expertise. Committees allowed specialists to focus on specific areas.
Detailed Study	Committees could study issues in depth, consult experts, review foreign constitutions, and gather data — something the full Assembly could not do efficiently.
Speed	Multiple committees could work simultaneously on different parts of the Constitution, speeding up the process.
Consensus Building	Committees provided a smaller, more manageable forum for negotiation and compromise among different viewpoints.
Expert Advice	Committees could invite legal experts, scholars, and administrators to advise them.

2.2 The Committee Structure

The Constituent Assembly created a **hierarchical committee structure**:





2.3 The Advisory Committee (Chairman: J.B. Kripalani)

The **Advisory Committee** was one of the most important committees. It was formed on **13 December 1946** and was chaired by **J.B. Kripalani**, a senior Congress leader.

Functions of the Advisory Committee:

1. To consider and decide upon the **Fundamental Rights** to be included in the Constitution.
2. To consider and decide upon the **safeguards for minorities**.
3. To consider and decide upon the **provisions for Scheduled Castes and Scheduled Tribes**.
4. To consider and decide upon the **provisions for the Northeast Frontier Tribal Areas**.

The Advisory Committee itself had several **sub-committees** that worked on specific issues.

(a) Sub-Committee on Fundamental Rights (Chairman: J.B. Kripalani)

This sub-committee was responsible for deciding **which rights** should be guaranteed to citizens and **how** they should be formulated.

Members of the Sub-Committee: - J.B. Kripalani (Chairman) - Alladi Krishnaswamy Iyer - N.G. Ayyangar - H.V. Kamath - K.M. Munshi - M. Ananthasayanam Ayyangar - T.T. Krishnamachari - Dr. B.R. Ambedkar - H.N. Kunzru - Dr. Rajendra Prasad - And others

The Process: 1. The sub-committee received **suggestions from various quarters** — political parties, social organizations, legal experts, and the general public. 2. It **studied the constitutions of other countries** — particularly the USA, Ireland, Germany, and the Government of India Act, 1935. 3. It held **multiple meetings** to discuss and debate each right. 4. It prepared a **draft list of Fundamental Rights** and submitted it to the Advisory Committee.

Key Debates in the Sub-Committee:

Issue	Debate	Outcome
Which rights to include?	Some wanted only civil and political rights; others wanted socio-economic rights too.	The Assembly included civil and political rights as Fundamental Rights (justiciable) and socio-economic rights as Directive Principles (non-justiciable).
Should rights be absolute?	Some wanted absolute rights; others wanted reasonable restrictions.	Rights were made subject to "reasonable restrictions" for public order, security, morality, etc.
Property as a Fundamental Right?	Some wanted the right to property as a Fundamental Right; others (especially socialists) opposed it.	The right to property was initially included as a Fundamental Right (Article 31) but was later removed by the 44th Amendment (1978).
Freedom of Speech	How much freedom should be guaranteed? Should there be restrictions?	Freedom of speech was guaranteed but subject to reasonable restrictions for sovereignty, security, public order, decency, and morality.

The Final List of Fundamental Rights:

After extensive deliberation, the following Fundamental Rights were included in the Constitution:

No.	Right	Articles	What It Means
1	**Right to Equality**	14–18	All citizens are equal before the law; no discrimination on grounds of religion, race, caste, sex, or place of birth; abolition of untouchability; abolition of titles
2	**Right to Freedom**	19–22	Freedom of speech and expression, assembly, association, movement, and occupation; protection against arbitrary arrest; protection of life and personal liberty
3	**Right Against Exploitation**	23–24	Prohibition of human trafficking, forced labour, and child labour in hazardous employment
4	**Right to Freedom of Religion**	25–28	Freedom of conscience; right to freely profess, practice, and propagate religion; freedom from religious instruction in state-funded educational institutions
5	**Cultural and Educational Rights**	29–30	Right of minorities (based on religion or language) to conserve their culture; right to establish and administer educational institutions
6	**Right to Constitutional Remedies**	32	Right to approach the Supreme Court for enforcement of Fundamental Rights through writs (Habeas Corpus, Mandamus, Prohibition, Certiorari, Quo Warranto)

Article 32 — The "Heart and Soul" of the Constitution:

Dr. Ambedkar called Article 32 the **"heart and soul"** of the Constitution because without the right to approach the court, all other Fundamental Rights would be meaningless. If a citizen's rights are violated, they can go directly to the Supreme Court, which has the power to issue **writs** (court orders) to enforce those rights.

Types of Writs under Article 32:

Writ	Meaning	When Used
Habeas Corpus	"Produce the body"	When a person is illegally detained; the court orders the detaining authority to produce the person before the court
Mandamus	"We command"	When a public authority fails to perform its duty; the court orders it to perform the duty
Prohibition	"To prohibit"	When a lower court exceeds its jurisdiction; the higher court orders it to stop
Certiorari	"To be certified"	When a lower court passes an illegal order; the higher court quashes the order
Quo Warranto	"By what authority?"	When a person holds a public office illegally; the court asks by what authority they hold the office

(b) Sub-Committee on Minorities (Chairman: H.V. Kamath)

This sub-committee dealt with the protection of **minority communities** — religious, linguistic, and cultural minorities.

Key Issues Discussed:

Issue	Discussion	Outcome
Separate Electorates	Should minorities have separate electoral rolls?	**Rejected.** The Assembly chose **joint electorates** with reserved seats for Scheduled Castes and Scheduled Tribes, believing separate electorates would divide society.
Cultural Rights	Should minorities have the right to preserve their culture?	**Accepted.** Articles 29–30 guarantee cultural and educational rights to minorities.
Political Representation	Should minorities have guaranteed political representation?	**Rejected** for most minorities, but **accepted for Scheduled Castes and Scheduled Tribes** through reserved seats in legislatures.
Language Rights	Should minority languages be protected?	**Accepted.** Minorities have the right to conserve their language, script, and culture.

Why was this important? India had deep communal divisions, especially after the partition. Protecting minorities was essential for maintaining unity and preventing further division.

(c) Sub-Committee on Tribal Areas (Chairman: G.R. Diwakar)

This sub-committee focused on the **protection and development of Scheduled Tribes** (tribal communities).

Key Recommendations:

1. **Scheduled Areas:** Certain areas with significant tribal populations were designated as "Scheduled Areas" with special administrative provisions.
2. **Tribes Advisory Council:** A council was to be set up in each state with a significant tribal population to advise on tribal welfare.
3. **Protection of Tribal Land:** Laws were to be made to prevent the alienation (transfer) of tribal land to non-tribals.
4. **Reserved Seats:** Seats were to be reserved for Scheduled Tribes in legislatures and public services.

(d) Sub-Committee on Fundamental Rights and Minorities (Chairman: N.G. Ayyangar)

This was a **larger committee** that consolidated the work of the two sub-committees (Fundamental Rights and Minorities). It was chaired by **N.G. Ayyangar**, a prominent lawyer and scholar.

Its work included: - Reviewing the reports of both sub-committees. - Reconciling differences between the two sets of recommendations. - Presenting a unified report to the Advisory Committee. - Ensuring that the rights of minorities were adequately protected within the framework of Fundamental Rights.

2.4 The Drafting Committee (Chairman: B.R. Ambedkar)

The **Drafting Committee** was the most crucial committee because it was responsible for **integrating all the reports** from various committees into a single, coherent draft Constitution.

When was it formed? The Drafting Committee was formed on **29 August 1947** — just a few weeks after India's independence.

Members of the Drafting Committee:

Member	Background	Contribution
B.R. Ambedkar (Chairman)	Lawyer, economist, social reformer	Overall drafting, reconciling conflicts, shaping the language and structure of the Constitution
Alladi Krishnaswamy Iyer	Senior lawyer, constitutional expert	Advised on parliamentary system, federal structure, and judicial provisions
N.G. Ayyangar	Lawyer, scholar	Contributed to Fundamental Rights and Directive Principles
K.M. Munshi	Lawyer, writer, social reformer	Advocated for social reform provisions and Hindi language
M. Ananthasayanam Ayyangar	Lawyer, administrator	Contributed to federal structure and provincial autonomy
T.T. Krishnamachari	Economist, administrator	Contributed to economic and financial provisions
D.P. Khaitan	Law professor, academic	Brought academic and legal expertise

Why was B.R. Ambedkar chosen as Chairman?

1. **Legal Expertise:** Ambedkar was one of India's most distinguished lawyers and constitutional scholars.
2. **Experience:** He had served as the Law Member in the Viceroy's Executive Council and was familiar with constitutional matters.
3. **Credibility:** As a leader of the Dalit community, he was trusted by the marginalized sections of society.
4. **Intellectual Capacity:** He was known for his ability to analyse complex issues and find practical solutions.
5. **Respect:** He was respected by members of all communities and political parties.

Work of the Drafting Committee:

The Drafting Committee's work can be divided into several stages:

Stage	Time Period	Work Done
Stage 1	August–November 1947	Studied the reports of all other committees; began drafting
Stage 2	November 1947–February 1948	Prepared the **first draft** of the Constitution; submitted it to the Assembly
Stage 3	February–October 1948	Received feedback from the Assembly and the public; revised the draft
Stage 4	October 1948–October 1949	Prepared the **final draft** after incorporating suggestions; presented it to the Assembly
Stage 5	November 1949	Final debate and adoption of the Constitution

How the Drafting Committee Worked:

1. **Studied Foreign Constitutions:** The committee studied the constitutions of at least **6 countries** in detail: - **USA:** Fundamental Rights, independence of judiciary, impeachment of President, removal of judges - **Britain:** Parliamentary government, rule of law, legislative procedures, single citizenship - **Ireland:** Directive Principles of State Policy, nomination to Rajya Sabha, method of election of President - **Germany:** Fundamental Rights, emergency powers of the President - **Canada:** Federal system with strong Centre, representation of Princely States in Rajya Sabha - **Australia:** Freedom of trade, concurrent list, joint sitting of Parliament - **Also studied:** France, Japan, South Africa, Soviet Union, and the Government of India Act, 1935
2. **Considered Public Suggestions:** Over **7,000 public memoranda** were received and considered.
3. **Held Regular Meetings:** The committee met regularly to discuss each article and clause.
4. **Reconciled Conflicts:** When different committees made conflicting recommendations, the Drafting Committee had to find a compromise.
5. **Shaped the Language:** The committee gave the Constitution its precise legal language and structure.

Ambedkar's Role:

Dr. Ambedkar was not the sole author of the Constitution, but he was its **chief architect**. He: - Gave the Constitution its **structure and coherence**. - Resolved **conflicts between different viewpoints**. - Ensured that **social justice** was at the heart of the Constitution. - Defended the Constitution in the Assembly through his **powerful speeches and arguments**.

Ambedkar's Famous Speech (25 November 1949):

In his closing speech to the Constituent Assembly, Ambedkar said:

> "We are today committed to faith and hope that freedom and equality will not be taken away from us and social, economic and political equality will be the foundations of our society."

He also warned:

> "Political democracy cannot last unless there lies at the base of it social democracy. What does social democracy mean? It means a way of life which recognises equality, liberty and fraternity."

2.5 Other Important Committees

(a) Union Powers Committee (Chairman: Jawaharlal Nehru)

This committee determined the **powers of the Union (Central) Government**.

Key Recommendations: - The Union should have **extensive powers** to maintain national unity. - A **three-list system** was recommended: Union List, State List, and Concurrent List. - The Union should have **residuary powers** (powers not mentioned in any list). - The Union should have **emergency powers** to handle crises.

(b) Union Constitution Committee (Chairman: Jawaharlal Nehru)

This committee framed the **structure of the Union Government**.

Key Recommendations: - A **parliamentary system** of government (not presidential). - A **bicameral Parliament** — Lok Sabha (Lower House) and Rajya Sabha (Upper House). - An **independent judiciary** with the Supreme Court at the apex. - A **President** as the constitutional head of state.

(c) Provincial Constitution Committee (Chairman: Sardar Patel)

This committee framed the **structure of State Governments**.

Key Recommendations: - Each state should have a **legislature** and an **executive**. - A **Governor** should be the constitutional head of each state. - A **Chief Minister** should be the head of the state government. - States should have **significant legislative powers** over subjects in the State List.

(d) Rules of Procedure Committee (Chairman: G.V. Mavalankar)

This committee established the **rules for conducting business** in the Constituent Assembly.

Key Rules: - How debates should be conducted. - How amendments should be proposed and considered. - How voting should take place. - What the quorum (minimum number of members) should be.

(e) States Committee (Chairman: Sardar Patel)

This committee dealt with the **integration of Princely States** into the Indian Union.

Key Work: - Negotiated with the princes of 565 Princely States. - Recommended the integration of most states into the Indian Union. - Handled special cases like Hyderabad, Junagadh, and Kashmir.

2.6 How Committees Contributed to the Final Constitution

Each committee played a specific role in shaping the final Constitution:

Committee	Contribution to Final Constitution
Fundamental Rights Sub-Committee	Part III of the Constitution (Articles 12–35) — all six categories of Fundamental Rights
Minorities Sub-Committee	Articles 29–30 (Cultural and Educational Rights for minorities); provisions for linguistic and religious minorities
Tribal Areas Sub-Committee	Fifth and Sixth Schedules (provisions for Scheduled Areas and tribal governance)
Drafting Committee	The entire text of the Constitution — integrating all reports into a coherent document
Union Powers Committee	Seventh Schedule (Union List, State List, Concurrent List); emergency provisions
Union Constitution Committee	Parts V and VI (Union and State Governments); parliamentary system; judiciary
Provincial Constitution Committee	Structure of State Governments; Governors; Chief Ministers
States Committee	Integration of Princely States; special provisions for different states

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TOPIC 3: DRAFT CONSTITUTION — KEY FEATURES AND IDEOLOGICAL FOUNDATIONS

3.1 The Preamble — The Identity Card of the Constitution

The **Preamble** is the introductory statement of the Constitution. It sets out the **basic values, goals, and philosophy** of the Constitution. Think of it as the **"identity card"** or **"visiting card"** of the Constitution.

The Preamble reads:

> "WE, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a **SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC** and to secure to all its citizens:
>
> **JUSTICE**, social, economic and political;
>
> **LIBERTY** of thought, expression, belief, faith and worship;
>
> **EQUALITY** of status and of opportunity;
>
> and to promote among them all **FRATERNITY** assuring the dignity of the individual and the unity and integrity of the Nation;
>
> IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November, 1949, do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION."

Key Words in the Preamble Explained:

Word	Meaning
Sovereign	India is an independent nation. No external power can control India's internal or external affairs. India has full authority to make its own laws and decisions.
Socialist	India aims to achieve social and economic equality through democratic means. This word was added by the 42nd Amendment (1976). It means "democratic socialism" — not communist-style state ownership, but reducing inequality and ensuring fair distribution of wealth.
Secular	The state has no official religion. All religions are treated equally. The state neither promotes nor discriminates against any religion. This word was added by the 42nd Amendment (1976), but the principle of secularism was present from the beginning.
Democratic	India is a democracy where the government is elected by the people. Power ultimately rests with the citizens.
Republic	The head of state (President) is elected, not hereditary. There is no monarchy. Every citizen has the right to hold public office.
Justice	Fairness in all spheres — social (no discrimination), economic (fair distribution of wealth), and political (equal political rights).
Liberty	Freedom of thought, expression, belief, faith, and worship. Citizens can think freely, speak freely, and practice their religion.
Equality	Equal status and opportunity for all. No person is superior or inferior to another by birth.
Fraternity	Brotherhood and a sense of belonging together. It ensures the dignity of every individual and the unity of the nation.

Who drafted the Preamble?

The Preamble was based on Jawaharlal Nehru's **Objectives Resolution** (moved on 13 December 1946). The final draft was prepared by **Dr. Ambedkar** and **K.M. Munshi**, with suggestions from other members.

Is the Preamble legally binding?

Initially, there was debate about whether the Preamble was enforceable in courts. In the **Kesavananda Bharati case (1973)**, the Supreme Court held that the Preamble is **part of the Constitution** and can be used to interpret ambiguous provisions. However, it is not a source of governmental power by itself.

3.2 Key Features of the Indian Constitution

The Indian Constitution has several distinctive features that make it unique.

Feature 1: Federal Structure with a Strong Centre

What is Federalism?

Federalism is a system of government in which **power is divided between a central (national) government and regional (state) governments**. Both levels of government have their own areas of authority, and neither can interfere in the other's domain.

India's Federal Structure:

The Indian Constitution divides legislative powers between the Union and the States through **three lists** in the **Seventh Schedule**:

List	Number of Subjects	Who Can Make Laws	Examples of Subjects
Union List	97 subjects	Only the Union Parliament	Defence, foreign affairs, currency, banking, communication, major industries, atomic energy, space
State List	66 subjects	Only State Legislatures	Police, public health, sanitation, agriculture, land, local government, education (initially)
Concurrent List	47 subjects	Both Union and State Legislatures	Education, forests, marriage, adoption, succession, trade, labour, social security

What happens if there is a conflict?

If a law made by the State conflicts with a law made by the Union on a Concurrent List subject, the **Union law prevails** (Article 254).

Why is the Centre Stronger than the States?

Unlike some federal countries (like the USA) where the Centre and States are roughly equal, India has a **strong Centre**. Here's why:

Reason for Strong Centre	Explanation
Extensive Union List	The Union has 97 subjects, including the most important ones (defence, foreign affairs, currency).
Residuary Powers	Any subject not mentioned in any list automatically goes to the Union (Article 248). In most federal countries, residuary powers go to the States.
Emergency Provisions	During emergencies, the Centre can take over State functions (Articles 352, 356, 360).
Governor's Role	The Governor is appointed by the President (Centre) and acts as a link between the Centre and the State.
All-India Services	Services like the IAS and IPS are controlled by the Centre but work in the States.
Single Judiciary	There is one integrated judicial system, not separate federal and state courts.
Appointment of Judges	Supreme Court and High Court judges are appointed by the Centre.

Why did the framers want a strong Centre?

1. **Partition (1947):** The traumatic partition of India into India and Pakistan created fears of further fragmentation. A strong Centre was seen as necessary to hold the country together.
2. **Integration of Princely States:** 565 princely states needed to be integrated into a unified India. This required a strong central authority.
3. **Communal Divisions:** Deep religious and communal divisions made the framers concerned about maintaining national unity.
4. **Economic Planning:** The framers believed that economic development required centralized planning and coordination.
5. **Protection of Weaker Regions:** A strong Centre could ensure that poorer and weaker regions received adequate support.

Granville Austin's View:

The American scholar **Granville Austin**, in his book "The Indian Constitution: Cornerstone of a Nation", argued that the framers designed a strong Centre **not because they distrusted democracy**, but because they believed that **without a powerful Centre, both democracy and social reform would be endangered by chaos or fragmentation**.

Feature 2: Parliamentary System of Government

What is a Parliamentary System?

A parliamentary system is a form of government in which: - The **executive (Prime Minister and Cabinet)** is drawn from the **legislature (Parliament)**. - The executive is **collectively responsible** to the legislature. - The head of state (President) is **ceremonial**, while the head of government (Prime Minister) holds **real power**.

Comparison: Parliamentary vs. Presidential System

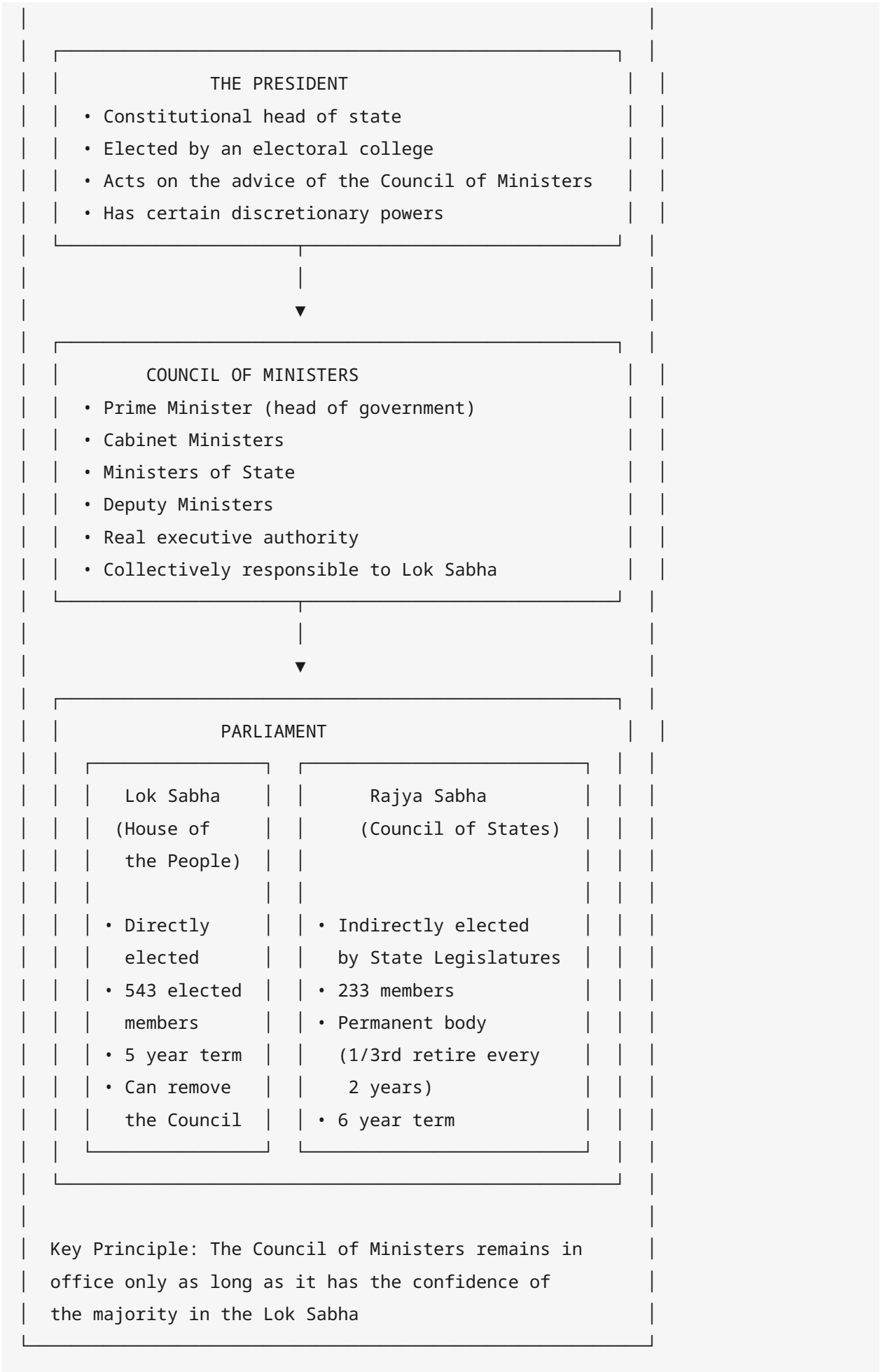
Feature	Parliamentary System (India)	Presidential System (USA)
Head of State	President (ceremonial)	President (real power)
Head of Government	Prime Minister	President
Executive-Legislature Relationship	Executive is part of the legislature	Executive is separate from the legislature
Accountability	Executive is responsible to the legislature	Executive is independent of the legislature
Removal	Prime Minister can be removed by a vote of no-confidence	President can be removed only by impeachment
Term	No fixed term for the executive; depends on majority in the legislature	Fixed term for the President (4 years in USA)

Why did India choose a Parliamentary System?

1. **Familiarity:** Indians had experience with parliamentary institutions under the Government of India Act, 1935.
2. **Democratic Accountability:** The parliamentary system ensures that the executive remains accountable to the people's representatives.
3. **Flexibility:** It allows for smoother transitions of power and easier removal of unpopular governments.
4. **Cooperation:** It encourages cooperation between the executive and the legislature.

Structure of the Parliamentary System in India:

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│              PARLIAMENTARY SYSTEM OF INDIA          │
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THE PRESIDENT
• Constitutional head of state
• Elected by an electoral college
• Acts on the advice of the Council of Ministers
• Has certain discretionary powers
COUNCIL OF MINISTERS
• Prime Minister (head of government)
• Cabinet Ministers
• Ministers of State
• Deputy Ministers
• Real executive authority
• Collectively responsible to Lok Sabha
PARLIAMENT
Lok Sabha
(House of the People)
• Directly elected
• 543 elected members
• 5 year term
• Can remove the Council
Rajya Sabha
(Council of States)
• Indirectly elected by State Legislatures
• 233 members
• Permanent body (1/3rd retire every 2 years)
• 6 year term
Key Principle: The Council of Ministers remains in office only as long as it has the confidence of the majority in the Lok Sabha

Emergency Powers of the Union Executive:

The Constitution gives the Centre special powers during emergencies:

Type of Emergency	Article	When Declared	Effect
National Emergency	352	War, external aggression, or armed rebellion	Centre can give directions to States; Fundamental Rights (except Articles 20 and 21) can be suspended
President's Rule (State Emergency)	356	Failure of constitutional machinery in a State	President can take over State functions; State Legislature can be dissolved
Financial Emergency	360	Threat to financial stability or credit of India	Centre can direct States to reduce salaries, reserve money, and follow financial guidelines

Feature 3: Fundamental Rights and Directive Principles

This is one of the most distinctive features of the Indian Constitution — the combination of **justiciable Fundamental Rights** and **non-justiciable Directive Principles**.

Fundamental Rights (Part III — Articles 12 to 35):

Fundamental Rights are the **basic rights guaranteed to every citizen** by the Constitution. They are:

Characteristic	Explanation
Justiciable	They can be enforced in a court of law. If a Fundamental Right is violated, the citizen can approach the Supreme Court or High Court.
Universal	They apply to all citizens (and in some cases, to all persons, including foreigners).
Subject to Reasonable Restrictions	They are not absolute. The state can impose reasonable restrictions for public order, security, morality, etc.
Protected from Ordinary Laws	They cannot be taken away by ordinary legislation. Special procedures are required for amendment.

The Six Categories of Fundamental Rights (Detailed):

1. Right to Equality (Articles 14–18):

Article	Provision	Explanation
14	Equality before law	All persons (citizens and foreigners) are equal before the law and are entitled to equal protection of the laws within India.
15	Prohibition of discrimination	The state shall not discriminate against any citizen on grounds only of religion, race, caste, sex, place of birth, or any of them.
16	Equality of opportunity in public employment	No citizen shall be discriminated against in matters of public employment on grounds of religion, race, caste, sex, descent, place of birth, residence, or any of them.
17	Abolition of Untouchability	"Untouchability" is abolished and its practice in any form is forbidden. The enforcement of any disability arising out of untouchability shall be an offence.
18	Abolition of Titles	The state shall not confer any title (like Sir, Lord, Rai Bahadur) except military or academic distinctions. Citizens cannot accept titles from foreign states.

Significance of Article 17 (Abolition of Untouchability):

This is one of the most revolutionary provisions in the Constitution. Untouchability was a deep-rooted social evil in India, where certain communities (Dalits) were treated as "untouchable" and denied basic human dignity. Article 17: - Declares untouchability **abolished**. - Makes its practice in **any form forbidden**. - Makes enforcement of any disability arising from untouchability an **offence punishable by law**.

This was a direct attack on the caste system and a commitment to social justice.

2. Right to Freedom (Articles 19–22):

Article	Provision	Explanation
19	Six Freedoms	(a) Freedom of speech and expression; (b) Freedom to assemble peacefully without arms; (c) Freedom to form associations or unions; (d) Freedom to move freely throughout India; (e) Freedom to reside and settle in any part of India; (f) Freedom to practise any profession, or to carry on any occupation, trade, or business
20	Protection in respect of conviction for offences	No person shall be convicted of any offence except for violation of a law in force; no person shall be punished more than once for the same offence (double jeopardy); no person shall be compelled to be a witness against himself (self-incrimination)
21	Protection of life and personal liberty	No person shall be deprived of his life or personal liberty except according to procedure established by law
21A	Right to education	The state shall provide free and compulsory education to all children aged 6 to 14 years (added by 86th Amendment, 2002)
22	Protection against arrest and detention	Persons arrested shall be informed of the grounds of arrest, have the right to consult a lawyer, and be produced before a magistrate within 24 hours

Article 21 — The Most Important Fundamental Right:

Article 21 states that **"No person shall be deprived of his life or personal liberty except according to procedure established by law."**

This is the most important Fundamental Right because: - It protects the **right to life** and **personal liberty**. - Over the years, the Supreme Court has **expanded** the meaning of "life" to include: - Right to live with human dignity - Right to clean environment - Right to health - Right to education - Right to privacy - Right to shelter - Right to livelihood - Right to die with dignity

Article 19 — The Six Freedoms:

Article 19 guarantees six fundamental freedoms to **all citizens** (not just to all persons):

1. **Freedom of Speech and Expression:** Citizens can express their opinions freely through speech, writing, printing, pictures, films, and other media. This is the basis of a democratic society.
2. **Freedom of Assembly:** Citizens can assemble peacefully and without arms for protests, demonstrations, and meetings.

3. **Freedom of Association:** Citizens can form associations, unions, political parties, and other groups.
4. **Freedom of Movement:** Citizens can move freely throughout the territory of India.
5. **Freedom of Residence:** Citizens can reside and settle in any part of India.
6. **Freedom of Occupation:** Citizens can practise any profession, or carry on any occupation, trade, or business.

3. Right Against Exploitation (Articles 23–24):

Article	Provision	Explanation
23	Prohibition of traffic in human beings and forced labour	Traffic in human beings (human trafficking) and "begar" (forced labour without payment) and any other similar forms of forced labour are prohibited. Violation is an offence.
24	Prohibition of child labour	No child below the age of 14 years shall be employed to work in any factory, mine, or any other hazardous employment.

4. Right to Freedom of Religion (Articles 25–28):

Article	Provision	Explanation
25	Freedom of conscience and free profession, practice and propagation of religion	All persons are equally entitled to freedom of conscience and the right to freely profess, practice, and propagate religion, subject to public order, morality, and health.
26	Freedom to manage religious affairs	Every religious denomination has the right to manage its own affairs in matters of religion.
27	Freedom from taxation for religious promotion	No person shall be compelled to pay taxes that are specifically for the promotion or maintenance of any particular religion.
28	Freedom from religious instruction in state-funded institutions	No religious instruction shall be provided in any educational institution wholly maintained out of state funds.

5. Cultural and Educational Rights (Articles 29–30):

Article	Provision	Explanation
29	Protection of interests of minorities	Any section of citizens having a distinct language, script, or culture shall have the right to conserve it. No citizen shall be denied admission to any state-funded educational institution on grounds only of religion, race, caste, language, or any of them.
30	Right of minorities to establish and administer educational institutions	All minorities, whether based on religion or language, shall have the right to establish and administer educational institutions of their choice. The state shall not discriminate against any educational institution in granting aid on grounds only of its management.

6. Right to Constitutional Remedies (Article 32):

Article	Provision	Explanation
32	Remedies for enforcement of Fundamental Rights	The Supreme Court shall have the power to issue directions, orders, or writs for the enforcement of Fundamental Rights. This is itself a Fundamental Right.

Dr. Ambedkar called Article 32 the **"heart and soul"** of the Constitution because without it, all other Fundamental Rights would be meaningless. If a citizen's rights are violated, they can go directly to the Supreme Court, which has the power to enforce those rights.

Directive Principles of State Policy (Part IV — Articles 36 to 51):

Directive Principles are **guidelines** for the state to create social and economic democracy through political democracy.

Characteristic	Explanation
Non-justiciable	They cannot be enforced in a court of law. If the state fails to implement them, no citizen can go to court to compel implementation.
Moral Obligations	They are moral obligations on the state. The state is expected to apply these principles in making laws and policies.
Socio-economic Focus	They focus on creating social and economic justice — reducing inequality, providing livelihood, education, health, and just working conditions.

Key Directive Principles:

Article	Directive Principle
39	Equal pay for equal work; prevention of concentration of wealth; equal distribution of material resources for common good; prevention of exploitation of labour
39A	Free legal aid to the poor (added by 42nd Amendment, 1976)
40	Organisation of village panchayats and endowing them with powers
41	Right to work, to education, and to public assistance in cases of unemployment, old age, sickness, and disablement
42	Provision for just and humane conditions of work and maternity relief
43	Living wage, means of livelihood, and leisure for all workers
44	Uniform Civil Code for all citizens throughout India
45	Early childhood care and education for children below 6 years (modified by 86th Amendment)
47	Raising the level of nutrition and the standard of living; improvement of public health
48	Organisation of agriculture and animal husbandry on modern and scientific lines
48A	Protection and improvement of environment and safeguarding of forests and wild life (added by 42nd Amendment)
49	Protection of monuments and places of national importance
50	Separation of judiciary from executive
51	Promotion of international peace and security; maintenance of just and honourable relations between nations

The Relationship Between Fundamental Rights and Directive Principles:

Aspect	Fundamental Rights	Directive Principles
Nature	Negative — they restrict the state from interfering with individual freedoms	Positive — they direct the state to take action for social welfare
Enforceability	Justiciable — enforceable in courts	Non-justiciable — not enforceable in courts
Focus	Individual rights	Social and economic goals
Purpose	Political democracy	Social and economic democracy
Origin	Largely from the USA Constitution	Largely from the Irish Constitution

The Compromise:

The framers faced a dilemma: they wanted both **individual freedoms** (Fundamental Rights) and **social justice** (Directive Principles). In a poor country, implementing social justice might require laws that could conflict with individual freedoms (e.g., land reform laws might conflict with the right to property).

The solution was a **compromise**: - **Fundamental Rights** would be **justiciable** (enforceable) to protect individual freedoms. - **Directive Principles** would be **non-justiciable** (not enforceable) to allow the state flexibility in pursuing social justice. - Both would be read together to achieve **"harmonious construction"** — a balance between liberty and social justice.

Feature 4: Secularism

What is Secularism?

Secularism means that the **state has no official religion** and treats all religions equally. The state neither promotes nor discriminates against any religion.

India's Model of Secularism:

India follows a model of **"positive secularism"** or **"principled distance"**: - The state can **intervene** in religious matters to promote social reform (e.g., abolishing untouchability, allowing temple entry for Dalits). - The state can **support** religious institutions for welfare purposes. - But the state cannot **favour** one religion over another.

Secular Provisions in the Constitution:

Article	Provision
25	Freedom of conscience and free profession, practice, and propagation of religion
26	Freedom to manage religious affairs
27	Freedom from taxation for religious promotion
28	Freedom from religious instruction in state-funded institutions
29	Protection of cultural and educational rights of minorities
30	Right of minorities to establish and administer educational institutions

Note: The word "secular" was not in the original Constitution but was added by the **42nd Amendment (1976)**. However, the **principle of secularism** was present from the beginning through the above provisions.

Feature 5: Independence of Judiciary

The Constitution provides for an **independent and integrated judiciary**:

Feature	Explanation
Single Judicial System	Unlike the USA (which has separate federal and state courts), India has a single, integrated judicial system with the Supreme Court at the apex, followed by High Courts and subordinate courts.
Judicial Review	Courts can examine the constitutionality of laws and executive actions. If a law violates the Constitution, the court can declare it unconstitutional and strike it down.
Security of Tenure	Judges of the Supreme Court and High Courts can be removed only through a difficult impeachment process, ensuring their independence.
Power of Contempt	Courts can punish anyone who disrespects or obstructs the administration of justice.
Appointment Process	Judges are appointed through a collegium system (a body of senior judges) to ensure independence from the executive.

Feature 6: Universal Adult Suffrage

What is Universal Adult Suffrage?

Universal adult suffrage means that **every citizen aged 18 and above** has the right to vote, regardless of: - Caste - Religion - Gender - Education - Property ownership - Social status

Why was this significant?

When India adopted universal adult suffrage in 1950, most newly independent countries had **qualifications** for voting — such as property ownership, education, or tax payment. India's decision was **radical** because:

1. **Illiteracy:** A large majority of Indians were illiterate.
2. **Poverty:** Most Indians were extremely poor.
3. **Lack of Awareness:** Many citizens had little awareness of politics or governance.

Despite these challenges, the framers believed that: - Every citizen, regardless of education or wealth, has the right to participate in democracy. - Democracy would educate the people over time. - Denying voting rights based on education or property would create an elitist system.

This was one of the most democratic decisions in the history of the world.

Feature 7: Single Citizenship

Unlike the USA (where a person is a citizen of both the nation and the state), India provides for **single citizenship**. A person is only a citizen of India, not a citizen of a particular state.

Why single citizenship? - It promotes national unity and integration. - It prevents parochial (narrow, local) loyalties. - It ensures that every citizen has equal rights throughout the country.

Feature 8: Fundamental Duties

Part IVA of the Constitution (Article 51A) lists **11 Fundamental Duties** of citizens. These were added by the **42nd Amendment (1976)** on the recommendation of the **Swaran Singh Committee**.

Duty	Description
1	To abide by the Constitution and respect the National Flag and National Anthem
2	To cherish and follow the noble ideals that inspired the national struggle for freedom
3	To uphold and protect the sovereignty, unity, and integrity of India
4	To defend the country and render national service when called upon
5	To promote harmony and the spirit of common brotherhood transcending religious, linguistic, and regional or sectional diversities
6	To value and preserve the rich heritage of our composite culture
7	To protect and improve the natural environment, including forests, lakes, rivers, and wildlife, and to have compassion for living creatures
8	To develop the scientific temper, humanism, and the spirit of inquiry and reform
9	To safeguard public property and to abjure violence
10	To strive towards excellence in all spheres of individual and collective activity
11	To provide opportunities for education to children between 6 and 14 years (added by 86th Amendment, 2002)

3.3 Ideological Foundations of the Constitution

The Indian Constitution is not just a legal document — it is built on a set of **ideological foundations** that reflect the values and aspirations of the Indian people.

The Preamble as the Ideological Core

The Preamble captures the key values:

Value	Meaning	Source of Inspiration
Justice	Fairness in social, economic, and political life	Influenced by socialist thought and the demand for social reform
Liberty	Freedom of thought, expression, belief, faith, and worship	Influenced by liberal democratic traditions, especially the French Revolution
Equality	Equal status and opportunity for all	Influenced by egalitarian thought and the struggle against caste discrimination
Fraternity	Brotherhood, dignity of the individual, unity of the nation	Influenced by Gandhian thought and the need for national integration

These values echo the **French Revolution's motto** — "Liberty, Equality, Fraternity" — but are **reinterpreted through Indian concerns** with caste, poverty, and communal division.

Granville Austin's Three Principles

Granville Austin, in his seminal book "The Indian Constitution: Cornerstone of a Nation", identified **three core principles** behind the constitutional design:

1. Unity and Integrity (Nation-Building):

The Constitution was designed to create a **united and integrated nation** out of a deeply divided society. This required: - A **strong Centre** to maintain national unity. - **Emergency powers** to handle crises. - **Single citizenship** to promote national identity. - **Integration of Princely States** into a unified India.

2. Democracy (Popular Sovereignty):

The Constitution was designed to establish a **democratic system** where: - **Universal adult suffrage** gives every citizen an equal voice. - **Parliamentary democracy** ensures accountability. - **Fundamental Rights** protect individual freedoms. - **Free and fair elections** ensure that the people's will is reflected in government.

3. Social Revolution (Transformative Justice):

The Constitution was designed to **transform Indian society** by: - **Dismantling caste hierarchies** through the abolition of untouchability and affirmative action. - **Promoting economic equality** through Directive Principles and land reforms. - **Ensuring social justice** through Fundamental Rights and special provisions for marginalized communities. - **Empowering the State** as an active agent of social change.

Austin's Key Insight:

These three principles are **not alternatives** but **joint objectives** of the Constitution. The Indian Constitution is designed **not just to limit power** but to **remake society** — eroding caste

hierarchies, promoting equality, and integrating a fragmented polity **without abandoning parliamentary democracy**.

The Constitution as a Charter of Social Revolution

Granville Austin describes the Indian Constitution as a **"charter of social revolution."** This means:

1. **The Constitution aims to change social relations and power structures** through constitutional means — not through violence or revolution.
2. **It seeks to dismantle caste hierarchies, economic inequality, and other entrenched social injustices.**
3. **Political Freedom and Social Revolution are joint objectives, not alternatives.** The Constitution does not choose between democracy and social justice — it pursues both simultaneously.
4. **The Constitution is a moral and social charter, not just an administrative blueprint.** It declares a social intent to reshape Indian society towards justice, equality, and dignity.
5. **The State is conceived as an active agent of change** — empowered and even required to intervene through land reforms, labour protection, education, and welfare policies.

"Revolution Through Law"

The FundamentalThe Fundamental Rights and Directive Principles together embody a project of **"revolution through law"** — seeking **gradual but far-reaching transformation** through democratic institutions. The Constitution does not rely on violent upheaval; instead, it uses **law, courts, legislatures, and democratic processes** to dismantle caste hierarchies, promote equality, and build a just society.

TOPIC 4: PROCEDURES AND PROTOCOL OF DEBATE AND ADOPTION

4.1 What Were the Rules of Procedure?

The **Rules of Procedure Committee** (Chairman: G.V. Mavalankar) was given the **priority task** of establishing clear rules for how the Constituent Assembly would function. This was essential because the Assembly was not just drafting a document — it was also serving as the **provisional legislature** of India during the transition period.

Key Rules Established:

Rule	Description	Why It Mattered
Notice Requirement	Members had to submit amendments or motions **in advance** — no surprise proposals allowed during debate.	Prevented chaos and ensured members could prepare responses
Clause-by-Clause Consideration	The Draft Constitution was debated **article by article, schedule by schedule** — extremely detailed scrutiny.	Every single provision was examined, questioned, and either accepted or amended
Time Allocation	The President allocated time to major topics to **prevent filibustering** (deliberate delay through prolonged speaking).	Ensured the work progressed despite 300+ members wanting to speak
Voting Methods	Usually by **voice vote** (members say "aye" or "no"); **division (roll call vote)** only if demanded by a member.	Balanced efficiency with the right to record individual positions
Quorum	A minimum number of members had to be present for the Assembly to transact business.	Ensured decisions were made by a representative body
Committee System	Work was divided among specialized committees that reported back to the full Assembly.	Made the massive task manageable; allowed expert input

4.2 The Role of the President (Dr. Rajendra Prasad)

Dr. Rajendra Prasad was elected as the **permanent President of the Constituent Assembly** on 11th December 1946. He served until the Assembly completed its work.

His Roles and Responsibilities:

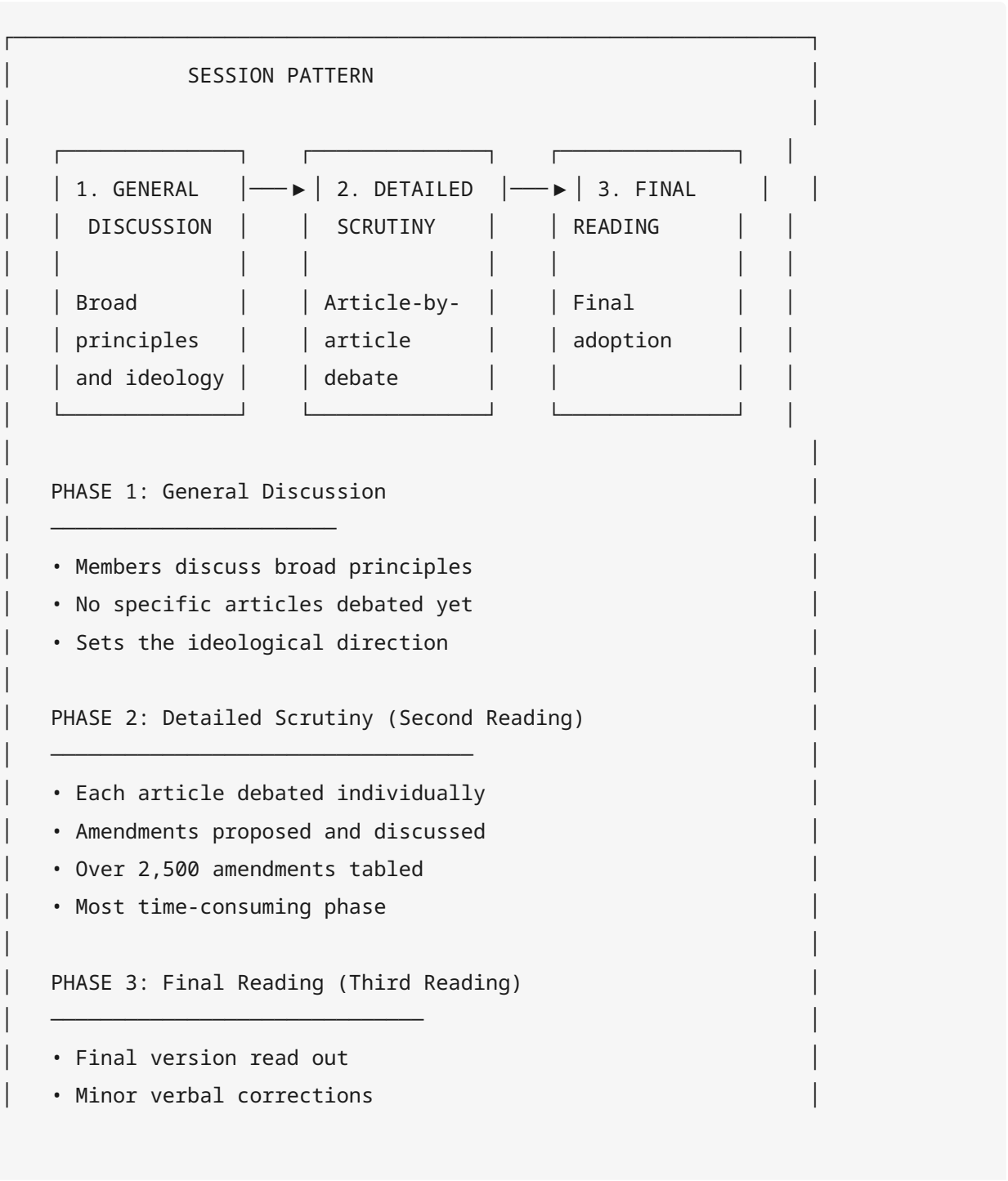
1. **Speaker of the Assembly:** - He acted as the **presiding officer** of the Assembly, similar to a Speaker in a modern parliament. - He **maintained order** during debates, calling members to order when debates became heated.
2. **Interpreter of Rules:** - He **interpreted the rules of procedure** when disputes arose about what was allowed or not allowed. - His decisions on procedural matters were **final** and could not be challenged.
3. **Gatekeeper of Amendments:** - He **decided whether amendments were admissible** — whether they were relevant to the article being debated and within the scope of the Constitution. - Some amendments were rejected as **out of scope** or **irrelevant**.

4. **Balancing Act:** - He ensured a **balance between thorough debate and forward progress**. - He gave **minority voices** a chance to be heard while preventing delays.
5. **Neutral Arbiter:** - Though he was a **Congress leader**, he tried to maintain **neutrality** in his role as President. - He did not participate in debates while presiding.

4.3 Structure of the Sessions

The Constituent Assembly held **eleven major sessions** over **two years, eleven months, and eighteen days** (from December 1946 to November 1949).

How Each Session Was Organized:



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│   • Constitution adopted on 26 November 1949                    │
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Duration of Work: - **Total time:** 2 years, 11 months, 18 days - **Number of sittings:** 11 major sessions - **Total amendments tabled:** Over 2,500 - **Public memoranda received:** Over 7,000

4.4 Debate Culture and "Constitutional Morality"

What is Constitutional Morality?

This is a **key concept** coined by **Dr. B.R. Ambedkar**. It refers to:

> **"The willingness to abide by constitutional methods, respect minority views, and prioritize reasoned compromise over majoritarian will."**

Why is it Important?

1. **Respect for Process:** Constitutional morality means following the **rules and procedures** of the Constitution, even when you disagree with the outcome.
2. **Protection of Minorities:** It means respecting the **rights of minorities** even when the majority disagrees with them.
3. **Reasoned Debate:** It means engaging in **rational, respectful debate** rather than using force or intimidation.
4. **Compromise Over Conflict:** It means seeking **middle ground** rather than insisting on absolute victory.

Ambedkar's Famous Words:

> "It is wrong to sanctimonize the majority. Majorities are frequently wrong and the history of political thought and the history of civilisation are replete with instances where majorities have been wrong."

Nature of Debates in the Assembly:

Feature	Description
Heated but Civil	Debates were passionate and sometimes emotional, but members generally respected each other and the rules.
Global References	Members cited **constitutions from around the world** — USA, UK, Ireland, Canada, Australia, Weimar Germany, Soviet Union — to support their arguments.
Philosophical Depth	Debates went beyond legal technicalities to **philosophical questions** about justice, equality, liberty, and the role of the State.
Cross-Voting	Though party whips existed, **individual members often voted against their party line** on contentious issues.
Intellectual Rigor	The Assembly demonstrated a **high level of intellectual engagement** — members were well-read and well-prepared.

4.5 Interplay Between Formal and Informal Processes

The Constitution was not made **only through formal debates** in the Assembly chamber. There was a **complex interplay** between formal and informal processes:

Informal Negotiations:

Where	What Happened
Congress Party Meetings	The Congress party, being the dominant force, often **pre-decided positions** in internal meetings before bringing them to the Assembly.
Leader Consultations	Key leaders (Nehru, Patel, Ambedkar, Rajendra Prasad) held **informal consultations** to resolve major disagreements.
Cabinet Discussions	The Interim Government's cabinet discussed constitutional issues alongside governance matters.
Committee Rooms	Committee members negotiated **behind closed doors** before presenting reports to the full Assembly.

Impact of Informal Processes:

- **Pre-digested Compromises:** Many major disagreements were **resolved informally** before reaching the Assembly floor. This gave debates a **managed quality** — the major conflicts were often settled before public debate.
- **Efficiency vs. Transparency:** While informal negotiations **speeded up the process**, they also meant that some **important decisions were not fully debated** in the public Assembly.

- **Substantive Quality:** Despite the managed nature, the debates remained **substantive** — members raised genuine concerns, proposed meaningful amendments, and engaged in serious intellectual exchange.

4.6 Public Engagement

The Constituent Assembly was not a **closed, elitist body**. There were several mechanisms for **public engagement**:

1. Press Coverage: - Debates were **reported in newspapers** across the country. - This created **public awareness** about constitutional issues. - Leaders and activists used the press to **influence public opinion** on constitutional matters.

2. Public Memoranda: - The Assembly **solicited public memoranda** — written submissions from citizens, organizations, and experts. - Over **7,000 memoranda** were received. - These were **studied and considered** by the relevant committees.

3. Committee Hearings: - Some committees held **public hearings** where experts and stakeholders could testify.

4. Indirect Accountability: - Though the Assembly was **not directly elected**, members were **accountable to their provincial legislative assemblies**, which were elected. - This created **indirect accountability to national opinion**.

Significance: This public engagement created a sense that the Constitution was not just the work of a **small elite** but reflected **broader national aspirations and concerns**.

4.7 Content and Outcomes of Key Debates

Debate 1: Federalism — Strong Centre vs. Provincial Autonomy

The Question: How much power should the Central Government have versus the State Governments?

Arguments Against a Strong Centre:

Argument	Who Made It	Reasoning
"Unitary India" Fears	Leaders from South India, Socialist members	A strong Centre would dominate States and destroy provincial autonomy
Diversity Argument	Regional leaders	India is too diverse for a single strong Centre to manage everything
Democratic Concern	Socialist members	Concentration of power in the Centre could lead to authoritarianism
Federal Tradition	Constitutional experts	True federalism requires equal partnership between Centre and States

Arguments For a Strong Centre:

Argument	Who Made It	Reasoning
Partition Trauma	Nehru, Ambedkar	The trauma of partition showed that without a strong Centre, the country could fragment further
Princely States	Sardar Patel	565 princely states needed to be integrated; a weak Centre could not manage this
Communal Divisions	Congress leaders	Memory of communal violence required a strong central authority to maintain unity
Economic Planning	Nehru	National economic development required centralized planning and resource allocation

The Outcome: The Constitution created a **federal structure with a strong Centre**: - **Union List** (97 subjects) — only the Centre can legislate on these (defence, foreign affairs, currency, communication, major industries). - **State List** (66 subjects) — States can legislate on these (police, public health, land, local government). - **Concurrent List** (47 subjects) — both Centre and States can legislate (education, forests, marriage, trade). - **Residuary Powers** — any subject not in any list goes to the **Centre** (unlike in the USA where residuary powers go to States). - **Emergency Provisions** — the Centre can take over State powers during emergencies. - **Governor's Role** — the Governor is appointed by the Centre and acts as a **link between Centre and State**.

Why This Matters: This structure reflects the framers' **priority of national unity over provincial autonomy**. They believed that **without a powerful Centre, both democracy and social reform would be endangered by chaos or fragmentation**.

Debate 2: Fundamental Rights — Scope and Limitation

The Question: How extensive should Fundamental Rights be, and how much power should courts have to strike down laws?

The Central Issue — Article 21:

Article 21 states: **"No person shall be deprived of his life or personal liberty except according to procedure established by law."**

Two Competing Concepts:

Concept	Origin	Meaning	Example
"Due Process of Law"	US Constitution (14th Amendment)	Courts can review not just the procedure but also the **substantive fairness and reasonableness** of the law itself	If a law is validly enacted but is "unreasonable" or "arbitrary," courts can strike it down
"Procedure Established by Law"	Japanese Constitution (Article 31)	A person can be deprived of life or liberty as long as the state follows a **validly enacted law and its prescribed procedures**, regardless of whether the law's content is fair or just	If a law is validly enacted by Parliament, courts cannot question its fairness — only whether the procedure was followed

Why Did India Choose "Procedure Established by Law"?

The Assembly members were concerned that a **powerful, independent judicial review** could hamper the newly independent government's ability to pass **progressive legislation**. Specifically:

1. **Land Reforms:** The government wanted to redistribute land from landlords to tenants. If courts could strike down land reform laws as "unreasonable," the entire social revolution would be blocked.
2. **Labour Regulations:** The government wanted to protect workers through minimum wages, working hours, and safety regulations. If courts could strike these down as "violations of freedom of contract," workers would remain unprotected.
3. **Affirmative Action:** The government wanted to provide reservations for Scheduled Castes, Scheduled Tribes, and Other Backward Classes. If courts could strike these down as "violations of equality," social justice would remain unrealized.

4. **Economic Planning:** The government wanted to nationalize key industries and regulate the economy. If courts could strike down economic laws as "unreasonable," the entire development agenda would be blocked.

Later Development — Maneka Gandhi Case (1978):

In the landmark case of **Maneka Gandhi vs. Union of India (1978)**, the Supreme Court **read "due process of law" back into the Constitution**. The Court ruled that:

> "Procedure established by law" must be **"fair, just, and reasonable"** — not merely any procedure enacted by Parliament.

This decision **reinforced constitutional supremacy** over parliamentary supremacy in matters of Fundamental Rights. It meant that courts could now review whether a law's procedure was **fair, just, and reasonable** — effectively bringing "due process" into Indian constitutional law.

Debate 3: Language — Hindi vs. English vs. Regional Languages

The Question: What should be the official language of India?

Arguments:

Position	Supporters	Reasoning
Hindi as National Language	Hindi-speaking leaders, nationalists	Hindi is the most widely spoken language; a national language is needed for unity
English as Permanent Official Language	Non-Hindi speakers, especially from South India	English is a neutral language; forcing Hindi would marginalize non-Hindi speakers
Multilingual Approach	Regional leaders, linguists	India is too diverse for a single language; all languages should be recognized

Outcome: - **Hindi in Devanagari script** was declared the **official language** of the Union. - **English** was retained as an **associate official language** for 15 years (until 1965). - **States** were free to choose their own official languages. - After 1965, due to protests from non-Hindi states, English was **retained indefinitely** as an associate official language.

Debate 4: Secularism — How to Define a Secular State

The Question: What does it mean for India to be a secular state?

Two Models Debated:

Model	Meaning	Example
"No-concern" Model	Strict separation of state and religion; the state should not engage with religion at all	USA — the Constitution has no mention of religion; state and religion are completely separate
"Equal-respect" Model	The state respects all religions equally; it may engage with religion but cannot favor one religion over another	India — the state can fund religious institutions, manage religious properties, and reform personal laws, but must treat all religions equally

Outcome: India adopted a version of the **"equal-respect" model**: - **Article 25** guarantees freedom of conscience and the right to freely profess, practice, and propagate religion. - The state can **regulate religious practices** in the interest of public order, morality, and health. - The state can **reform personal laws** (marriage, divorce, inheritance) even if they are based on religion. - The word **"secular"** was not in the original Constitution but was added by the **42nd Amendment (1976)**.

Debate 5: Directive Principles — Justiciable or Not?

The Question: Should Directive Principles (socio-economic goals) be enforceable in courts, like Fundamental Rights?

Arguments:

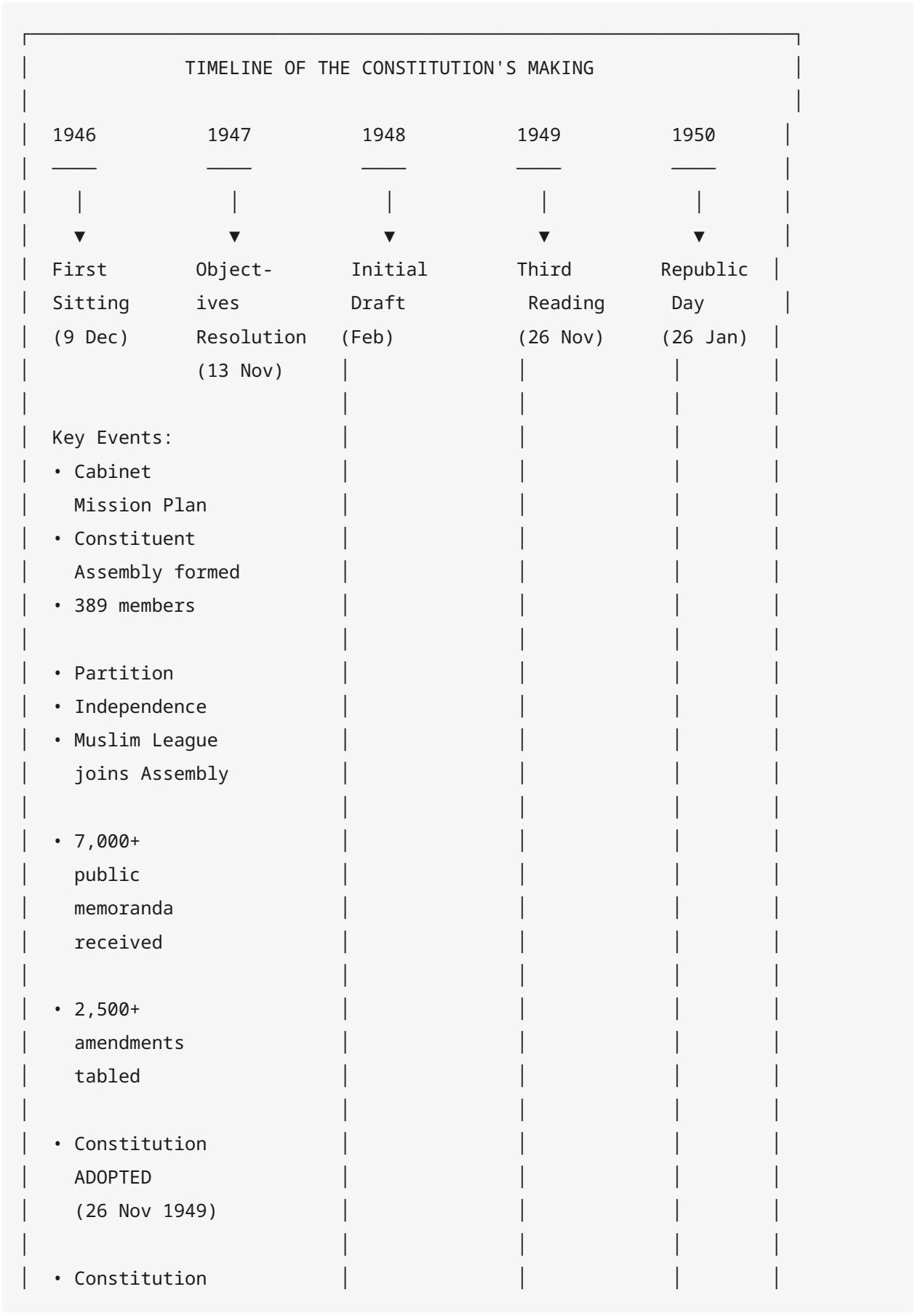
Position	Supporters	Reasoning
Make Them Justiciable	Socialist members, social reformers	If they are not enforceable, they are meaningless; the poor will never get justice
Keep Them Non-Justiciable	Pragmatic leaders, legal experts	In a poor country, courts cannot enforce broad socio-economic goals; this would clog the courts and embarrass the government

Outcome: Directive Principles were kept **non-justiciable** (Article 37): - They are **"fundamental in the governance of the country"** and it is the **duty of the State** to apply them. - But they are **"not enforced by any court."**

Why This Compromise? - The framers wanted a **strong social-revolutionary program** but were cautious about **clogging courts** with enforcement of broad socio-economic claims. - In a **poor, newly independent country**, too many enforceable rights could obstruct necessary social reforms. - The solution: A **robust catalogue of civil-political rights** (justiciable) alongside **pragmatic socio-economic principles** (non-justiciable), together aiming at a balance between **liberal freedoms and social justice**.

4.8 Timeline and Adoption

Complete Timeline of the Constitution's Making:



```
│    ENFORCED                │              │              │        │
│    (26 Jan 1950)           │              │              │        │
│    = Republic Day          │              │              │        │
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Key Dates Explained:

Date	Event	Significance
9 December 1946	First sitting of the Constituent Assembly	Dr. Sachchidananda Sinha elected as temporary President
11 December 1946	Dr. Rajendra Prasad elected as permanent President	He served until the Assembly completed its work
13 November 1947	Nehru moved the Objectives Resolution	This resolution laid down the fundamental principles and philosophy of the Constitution; it later became the Preamble
February 1948	Initial Draft of the Constitution prepared	The Drafting Committee, chaired by Ambedkar, presented the first draft
November 1949	Second Reading — Over 2,500 amendments tabled	Each article was debated individually; amendments were proposed, discussed, and either accepted or rejected
26 November 1949	Third Reading — Constitution adopted	The final version was read out; minor verbal corrections were made; the Constitution was formally adopted
26 January 1950	Constitution came into force	This day is celebrated as **Republic Day** every year

Why 26 November and 26 January?

Date	Reason
26 November 1949 (Adoption)	Chosen to mark the **Declaration of Sovereignty** (1929), when the Indian National Congress declared **Poorna Swaraj** (complete independence) at the Lahore Session
26 January 1950 (Enforcement)	Chosen to mark the **anniversary of Poorna Swaraj Day** — the Lahore Congress declaration of 1929. This connected the new Constitution to the **freedom struggle's historic moment**

The Objectives Resolution (13 November 1947):

This was moved by **Jawaharlal Nehru** and adopted by the Assembly on 22nd January 1947. It later became the **Preamble** of the Constitution.

Key Provisions of the Objectives Resolution:

1. India shall be a **sovereign republican democratic state**.
2. **Territorial integrity** of India shall be preserved.
3. **Justice** — social, economic, and political — shall be secured for all.
4. **Liberty** of thought, expression, belief, faith, and worship.
5. **Equality** of status and opportunity.
6. **Fraternity** — ensuring the dignity of the individual and the unity of the nation.
7. Adequate **safeguards for minorities, backward classes, Scheduled Castes, Scheduled Tribes**, and other disadvantaged groups.
8. **Independent nations** shall live together in peace.

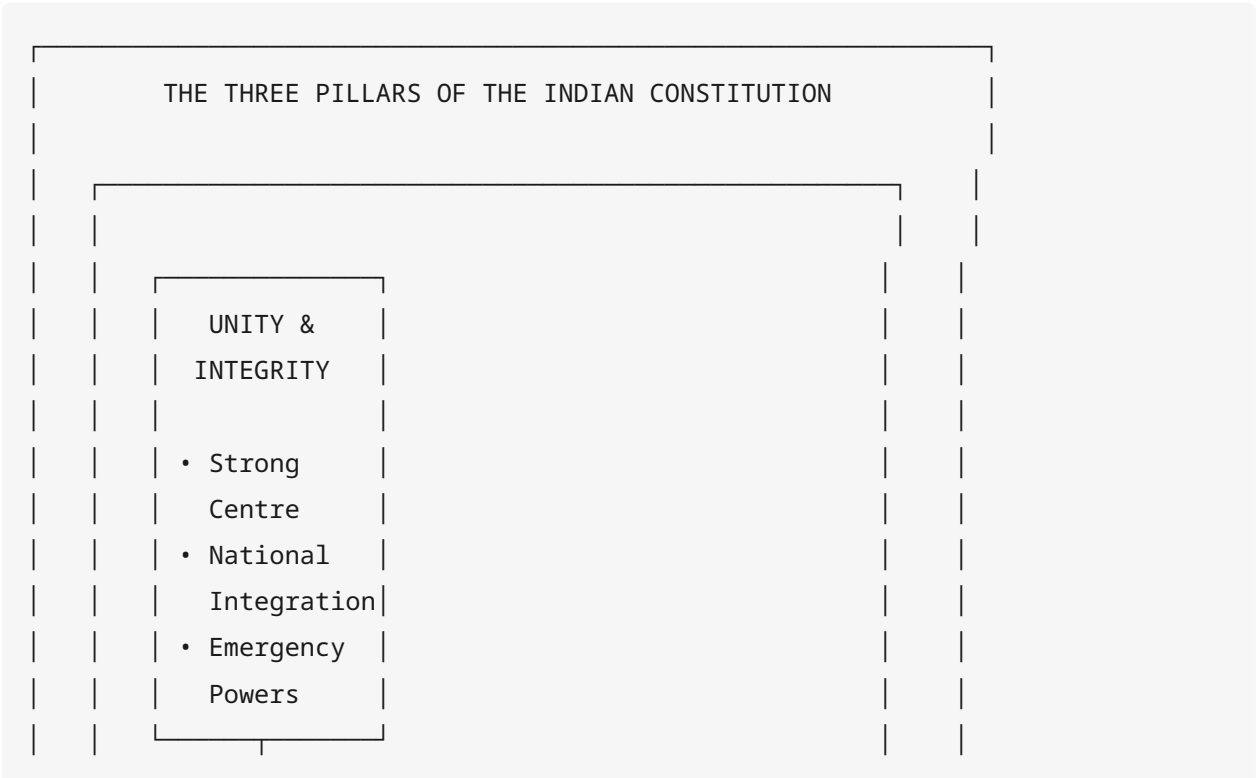
4.9 Final Assessment — Why the Constitution Endures

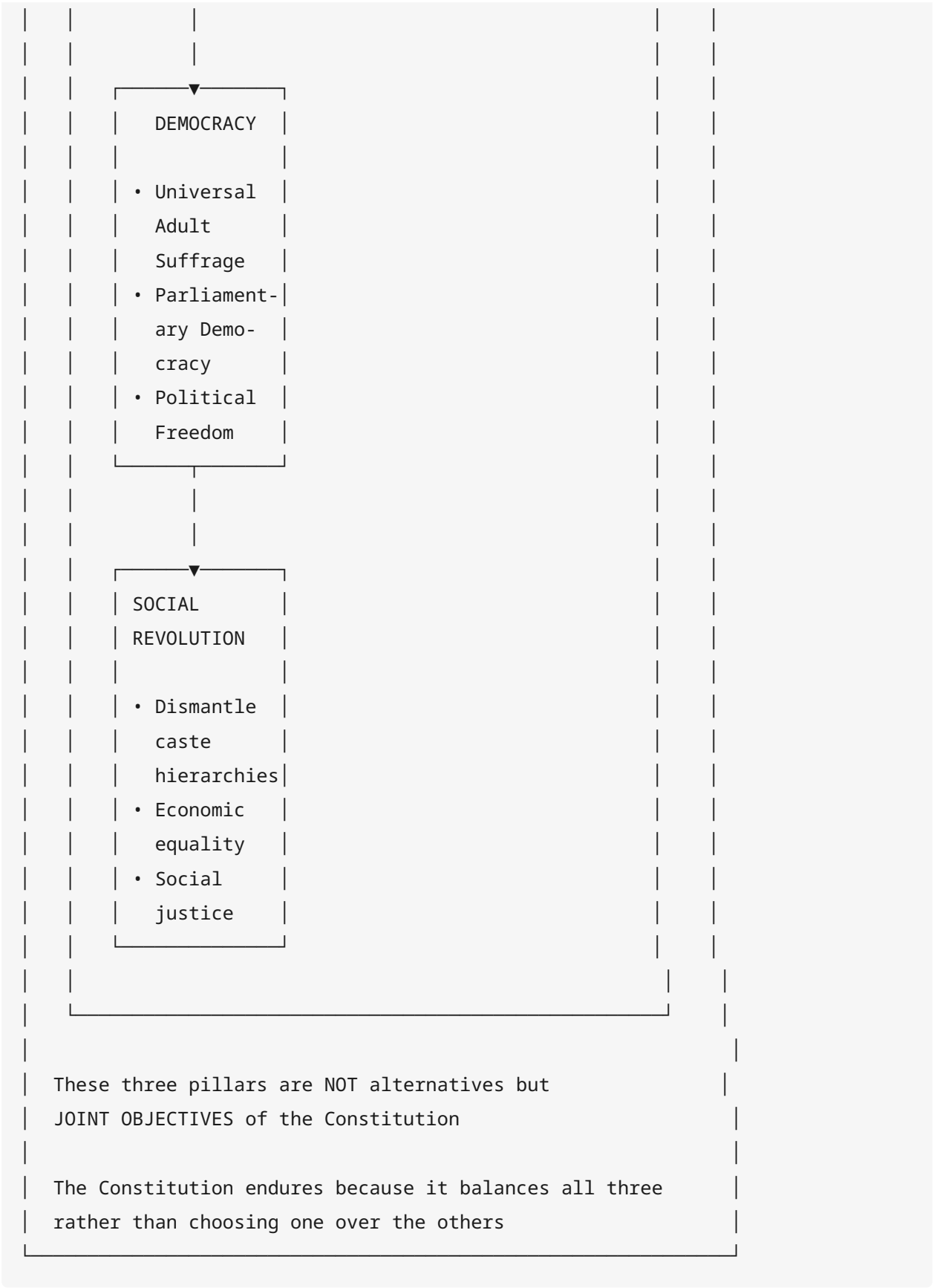
The making of the Indian Constitution exemplifies **"constrained creativity"** — the framers worked under enormous constraints (partition, poverty, illiteracy, communal divisions, princely states) but produced a document that has endured for over 75 years.

Why Has the Constitution Endured?

Reason	Explanation
Institutionalised Tension	The Constitution does not resolve all tensions; it **institutionalises productive tension** between unity and diversity, liberty and equality, individual rights and group protections. This allows it to **adapt and evolve** over time.
Built-In Flexibility	The Constitution has **amendment procedures** (Article 368) that allow it to be changed while maintaining its basic structure.
Judicial Review	The Supreme Court has the power to **interpret and expand** the Constitution through judgments, keeping it relevant to changing times.
Broad Consensus	The Constitution was made through **extensive debate, negotiation, and compromise** — it reflects a broad consensus, not the will of a single group.
Moral Authority	The Constitution is not just a legal document; it is a **moral charter** that declares India's commitment to justice, equality, liberty, and fraternity.
Social Revolution	The Constitution aims to **transform society** — eroding caste hierarchies, promoting equality, and building a just society. This transformative vision gives it **purpose and direction**.

The Three Pillars (Granville Austin's Framework):




DEMOCRACY
• Universal Adult Suffrage
• Parliament-ary Demo-cracy
• Political Freedom
SOCIAL REVOLUTION
• Dismantle caste hierarchies
• Economic equality
• Social justice
These three pillars are NOT alternatives but JOINT OBJECTIVES of the Constitution
The Constitution endures because it balances all three rather than choosing one over the others

QUICK REVISION SUMMARY — ALL FOUR TOPICS

Topic 1: Formation of the Constituent Assembly

Key Point	Detail
How formed?	Based on Cabinet Mission Plan (1946)
Election method?	Indirect election by Provincial Legislative Assemblies
Original strength?	389 members (292 from provinces, 93 from Princely States)
After partition?	299 members (229 from provinces, 70 from Princely States)
First meeting?	9th December 1946
Temporary President?	Dr. Sachchidananda Sinha
Permanent President?	Dr. Rajendra Prasad (elected 11th December 1946)
Representation?	Proportional representation using single transferable vote
Muslim League?	Boycotted in December 1946; joined after partition in 1947
Three roles of CA?	1. Constituent Assembly (draft Constitution) 2. Provisional Legislature (pass laws) 3. Deliberative Body (discuss national issues)

Topic 2: Committees and Subcommittees

Committee	Chairman	Key Work
Advisory Committee	J.B. Kripalani	Fundamental Rights, Minority Rights, Citizenship
Sub-Committee on Fundamental Rights	J.B. Kripalani	Decided which rights to include and how to formulate them
Sub-Committee on Minorities	H.V. Kamath	Protection of religious and cultural minorities
Sub-Committee on Tribal Areas	G.R. Diwakar	Special provisions for Scheduled Tribes
Drafting Committee	B.R. Ambedkar	Integrated all committee reports into a single draft Constitution
Union Powers Committee	Jawaharlal Nehru	Determined powers of the Union Government
Provincial Constitution Committee	Sardar Patel	Framed structure of State Governments
Rules of Procedure Committee	G.V. Mavalankar	Established rules for debates, amendments, voting
States Committee	Sardar Patel	Handled integration of Princely States

Fundamental Rights (Part III): 1. Right to Equality (Articles 14-18) 2. Right to Freedom (Articles 19-22) 3. Right Against Exploitation (Articles 23-24) 4. Right to Freedom of Religion (Articles 25-28) 5. Cultural and Educational Rights (Articles 29-30) 6. Right to Constitutional Remedies (Article 32)

Topic 3: Draft Constitution — Key Features and Ideological Foundations

Key Features: 1. **Federal Structure with Union Dominance** — Strong Centre with extensive Union List, residuary powers, and emergency provisions 2. **Parliamentary System** — Westminster model; President ceremonial; PM holds real power 3. **Fundamental Rights + Directive Principles** — Justiciable civil-political rights + non-justiciable socio-economic goals 4. **Secularism** — Equal respect for all religions; state may engage with religion but cannot favor one 5. **Independent Judiciary** — Supreme Court at apex; judicial review power 6. **Universal Adult Suffrage** — Every citizen 18+ can vote, regardless of caste, religion, gender, education

Ideological Foundations: 1. **Preamble** — Justice, Liberty, Equality, Fraternity 2. **Austin's Three Principles** — Unity & Integrity, Democracy, Social Revolution 3. **Constitution as Social**

Revolution — Aims to dismantle caste hierarchies, promote equality 4. **Transformative Constitution** — Seeks to change social relations through constitutional means 5. **Cosmopolitan Constitution** — Draws from diverse global traditions (liberal, socialist, republican, Gandhian) 6. **Revolution Through Law** — Uses law, courts, and democratic processes for social transformation

Built-In Tensions (Features, Not Bugs): 1. Centralisation vs. Decentralisation 2. Individual Rights vs. Group Protections 3. Formal Equality vs. Substantive Social Justice 4. Secular Neutrality vs. Accommodation of Religion

Topic 4: Procedures and Protocol of Debate and Adoption

Rules of Procedure: - Notice requirement for amendments - Clause-by-clause consideration - Time allocation to prevent filibustering - Voice voting (division only if demanded) - Quorum requirement

Debate Culture: - Heated but civil - Global constitutional references - Philosophical depth - Cross-voting on contentious issues - Constitutional morality (Ambedkar's concept)

Key Debates: 1. Federalism — Strong Centre vs. Provincial Autonomy 2. Fundamental Rights — "Due Process" vs. "Procedure Established by Law" 3. Language — Hindi vs. English vs. Regional Languages 4. Secularism — "No-concern" vs. "Equal-respect" model 5. Directive Principles — Justiciable or Not?

Timeline: - 9 December 1946 — First sitting - 13 November 1947 — Objectives Resolution moved by Nehru - February 1948 — Initial Draft prepared - November 1949 — 2,500+ amendments tabled - 26 November 1949 — Constitution adopted - 26 January 1950 — Constitution enforced (Republic Day)

Why the Constitution Endures: - Institutionalised tension between competing values - Built-in flexibility through amendments - Judicial review and interpretation - Broad consensus through extensive debate - Moral authority as a charter of social revolution - Balance of Austin's three pillars (Unity, Democracy, Social Revolution)

IMPORTANT NAMES AND THEIR CONTRIBUTIONS

Name	Role	Key Contribution
Dr. B.R. Ambedkar	Chairman, Drafting Committee	Chief architect of the Constitution; champion of social justice; coined "constitutional morality"
Dr. Rajendra Prasad	President of Constituent Assembly	Presided over debates; maintained order; later first President of India
Jawaharlal Nehru	Key Member	Moved Objectives Resolution; chaired Union Powers Committee; shaped ideological direction
Sardar Vallabhbhai Patel	Key Member	Integration of Princely States; chaired Provincial Constitution Committee and States Committee
J.B. Kripalani	Chairman, Advisory Committee	Chaired Advisory Committee and Sub-Committee on Fundamental Rights
Alladi Krishnaswamy Iyer	Member, Drafting Committee	Constitutional expert; advised on parliamentary system and federal structure
N.G. Ayyangar	Key Member	Key role in drafting Fundamental Rights and Directive Principles
K.M. Munshi	Member, Drafting Committee	Advocated for Hindi and social reform
G.V. Mavalankar	Chairman, Rules of Procedure Committee	Established rules for Assembly functioning; later first Speaker of Lok Sabha
Benegal Narsing Rau	Legal Advisor	Prepared the initial draft of the Constitution before the Drafting Committee
Granville Austin	Scholar	Wrote "The Indian Constitution: Cornerstone of a Nation"; identified three core principles
H.V. Kamath	Chairman, Sub-Committee on Minorities	Protection of religious and cultural minorities
G.R. Diwakar		Special provisions for Scheduled Tribes

Name	Role	Key Contribution
	Chairman, Sub-Committee on Tribal Areas	
T.T. Krishnamachari	Member, Drafting Committee	Economic and financial provisions
D.P. Khaitan	Member, Drafting Committee	Legal expertise; academic perspective
M. Ananthasayanam Ayyangar	Member, Drafting Committee	Federal structure; provincial autonomy

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KEY CONCEPTS EXPLAINED SIMPLY

What is a Constitution?

A Constitution is the **supreme law of a country**. It sets out: - How the government is formed - What powers the government has - What rights citizens have - How laws are made - How disputes are resolved

What is the Constituent Assembly?

It is a **body of representatives** chosen specifically to **draft and adopt a Constitution**. It is not a regular parliament; its job ends once the Constitution is adopted.

What is Federalism?

Federalism is a system where **power is divided between a central government and state governments**. In India, the Centre has more power than the States (unlike in the USA where States have significant power).

What is Parliamentary Democracy?

It is a system where: - The **elected legislature** (parliament) is supreme. - The **executive** (Prime Minister and Cabinet) is drawn from the legislature. - The executive remains in power only as long as it has the **confidence of the majority** in the legislature.

What are Fundamental Rights?

These are **basic rights guaranteed to every citizen** by the Constitution. They are: - **Justiciable** — you can go to court if they are violated. - **Subject to reasonable restrictions** — they are not absolute.

What are Directive Principles?

These are **guidelines for the government** to create a just society. They are: - **Non-justiciable** — you cannot go to court to enforce them. - **Moral obligations** on the government.

What is Secularism?

Secularism means the **state does not favor any religion**. In India, the state: - Respects all religions equally. - Does not have an official state religion. - May engage with religion (fund religious institutions, reform personal laws) but must treat all religions equally.

What is Constitutional Morality?

This is a concept coined by Ambedkar. It means: - Following constitutional methods and procedures. - Respecting minority views. - Prioritizing reasoned compromise over majoritarian will.

What is Judicial Review?

It is the power of courts to **examine laws and government actions** and declare them **unconstitutional** if they violate the Constitution.

What is the Basic Structure Doctrine?

This is a principle developed by the Supreme Court (in the **Kesavananda Bharati case, 1973**). It says that while the Constitution can be amended, its **basic structure** (core features) cannot be destroyed. This includes: - Supremacy of the Constitution - Republican and democratic form of government - Secularism - Separation of powers - Federalism

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SAMPLE 10-MARK ANSWERS

Question 1: Describe the formation and structure of the Constituent Assembly of India.

Answer:

The Constituent Assembly of India was the body responsible for drafting and adopting the Constitution of India. It was formed based on the **Cabinet Mission Plan of 1946**, which was proposed by a three-member British Cabinet Mission (Pethick Lawrence, Stafford Cripps, A.V. Alexander) sent to India to plan the transfer of power.

Formation: The Assembly was formed through **indirect elections** by the Provincial Legislative Assemblies. The elections to these provincial assemblies were held in February 1946 on the basis of limited adult franchise. The original strength was **389 members** — 292 from British Indian provinces and 93 from Princely States. After partition in 1947, the strength was reduced to

299 members (229 from provinces, 70 from princely states). Representation followed the principle of **proportional representation** using the single transferable vote system, with seats allocated to different communities (General, Muslims, Sikhs, Indian Christians, Anglo-Indians).

Structure: The Constituent Assembly functioned as **three different bodies simultaneously**: 1. **Constituent Assembly** — for drafting the Constitution 2. **Provisional Legislature** — for passing laws during the transition period 3. **Deliberative Body** — for discussing national issues

The Assembly held its **first sitting on 9th December 1946**. Dr. Sachchidananda Sinha was elected as the temporary President, and **Dr. Rajendra Prasad** was elected as the permanent President on 11th December 1946. The Assembly created several **committees and subcommittees** to manage its work, including the Advisory Committee (J.B. Kripalani), the Drafting Committee (B.R. Ambedkar), the Union Powers Committee (Jawaharlal Nehru), and the Provincial Constitution Committee (Sardar Patel).

Important Note: The Muslim League initially **boycotted** the Assembly in December 1946 after it rejected the demand for Pakistan. They later joined in 1947 after partition.

The Assembly worked for **two years, eleven months, and eighteen days**, holding eleven major sessions. The Constitution was finally adopted on **26th November 1949** and came into force on **26th January 1950**, which is celebrated as Republic Day.

Question 2: Explain the role of committees in the making of the Indian Constitution.

Answer:

The Constituent Assembly created several **committees and subcommittees** to manage the massive task of drafting the Constitution. Each committee studied a specific area, consulted experts, reviewed global models, and submitted detailed reports. These reports formed the basis of the final Constitution.

The Advisory Committee (Chairman: J.B. Kripalani): This was one of the most important committees. It dealt with Fundamental Rights and Minority Rights. It had several subcommittees: - **Sub-Committee on Fundamental Rights (J.B. Kripalani):** Decided which rights to include and how to formulate them. The final Fundamental Rights (Part III) include the Right to Equality (Articles 14-18), Right to Freedom (Articles 19-22), Right Against Exploitation (Articles 23-24), Right to Freedom of Religion (Articles 25-28), Cultural and Educational Rights (Articles 29-30), and Right to Constitutional Remedies (Article 32). - **Sub-Committee on Minorities (H.V. Kamath):** Dealt with protection of religious and cultural minorities. The Assembly rejected separate electorates but retained cultural and educational protections for minorities. - **Sub-Committee on Tribal Areas (G.R. Diwakar):** Addressed special provisions for Scheduled Tribes, including reserved seats and special administration.

The Drafting Committee (Chairman: B.R. Ambedkar): This was the most crucial committee. It was responsible for **integrating all the reports** from various committees into a single, coherent draft Constitution. The committee produced the first draft in February 1948, which was circulated among Assembly members and the public. Over 7,000 public memoranda were received and considered. The final draft was presented in October 1949 for article-by-article debate.

Other Important Committees: - **Union Powers Committee (Nehru):** Determined the powers of the Union Government, recommending a strong Centre. - **Provincial Constitution Committee (Patel):** Framed the structure of State Governments. - **Rules of Procedure Committee (Mavalankar):** Established rules for debates, amendments, voting, and quorum. - **States Committee (Patel):** Handled the integration of Princely States.

The committee system made the massive task manageable, allowed expert input, and ensured thorough consideration of every aspect of the Constitution.

Question 3: What are the key features of the Indian Constitution?

Answer:

The Indian Constitution is the **lengthiest written constitution** in the world. Its key features are:

1. Federal Structure with Union Dominance: India has a federal system where power is divided between the Centre and States through three lists — Union List (97 subjects), State List (66 subjects), and Concurrent List (47 subjects). However, the Centre has dominance through: - Extensive Union List - Residuary powers (subjects not in any list go to the Centre) - Emergency provisions (Articles 352, 356, 360) - Governor's role as Centre's agent

This was designed because of the trauma of partition, the need to integrate 565 princely states, and the fear of further fragmentation.

2. Parliamentary System of Government: India follows the Westminster model. The President is the ceremonial head of state, while the Prime Minister and Council of Ministers hold real executive authority. The Council of Ministers is collectively responsible to the Lok Sabha (Lower House). This system was chosen because it was familiar from colonial experience and ensures democratic accountability.

3. Fundamental Rights and Directive Principles: - **Fundamental Rights (Part III)** are justiciable civil-political liberties that can be enforced in courts. They include equality, freedom, protection against exploitation, religious freedom, cultural rights, and constitutional remedies. - **Directive Principles (Part IV)** are non-justiciable socio-economic goals addressed to the State. They include reduction of inequality, provision of livelihood, education, health, and just working conditions. Together, they aim at a balance between liberal freedoms and social justice.

4. Secularism: India is a secular state that respects all religions equally. Article 25 guarantees freedom of conscience and the right to freely profess, practice, and propagate religion. The state may engage with religion but cannot favor one religion over another.

5. Independence of Judiciary: An independent and integrated judiciary with the Supreme Court at the apex. Courts have the power of judicial review — they can strike down laws that violate the Constitution.

6. Universal Adult Suffrage: Every citizen aged 18 and above has the right to vote, regardless of caste, religion, gender, or education. This was a radical decision for a poor, illiterate country.

7. Single Citizenship: Unlike the USA (where citizens are both citizens of the country and of their state), India has **single citizenship** — all Indians are citizens of India only.

8. Preamble: The Preamble declares India as a **Sovereign, Socialist, Secular, Democratic Republic** committed to Justice, Liberty, Equality, and Fraternity.

Question 4: Explain the ideological foundations of the Indian Constitution.

Answer:

The Indian Constitution is not just a legal document; it is a **moral and social charter** that declares India's commitment to transforming society. Its ideological foundations include:

1. The Preamble: The Preamble gathers the key values of the Constitution: - **Justice** (Social, Economic, Political) — fairness in all spheres of life - **Liberty** (of thought, expression, belief, faith, worship) — freedom of the individual - **Equality** — equal status and opportunity for all - **Fraternity** — brotherhood, dignity of the individual, and unity of the nation

These terms echo global constitutional discourse (liberty, equality, fraternity from the French Revolution) while being reinterpreted through Indian concerns with caste, poverty, and communal division.

2. Granville Austin's Three Principles: Scholar Granville Austin identified three core principles: - **Unity and Integrity** — a strong Centre to maintain national integration - **Democracy** — universal adult suffrage, parliamentary democracy, political freedom - **Social Revolution** — dismantling caste hierarchies, promoting economic equality and social justice

These three principles are **joint objectives, not alternatives**. The Constitution aims to achieve all three simultaneously.

3. Constitution as a Charter of Social Revolution: The Constitution aims to **dismantle caste hierarchies, economic inequality, and other entrenched social injustices**. Political freedom and social revolution are joint objectives. The State is conceived as an **active agent of change** — empowered to intervene through land reforms, labour protection, education, and welfare policies.

4. Transformative and Cosmopolitan Constitution: - **Transformative:** The Constitution aims to change social relations and power structures through constitutional means. - **Cosmopolitan:** It draws from diverse global traditions — liberal, socialist, republican, Gandhian — and adapts them to Indian conditions.

5. Built-In Tensions: The Constitution contains deliberate tensions that create space for later political and judicial contestation: - Centralisation vs. Decentralisation - Individual Rights vs. Group Protections - Formal Equality vs. Substantive Social Justice - Secular Neutrality vs. Accommodation of Religion

These tensions are **features, not bugs** — they allow the Constitution to evolve and adapt.

6. Revolution Through Law: The Fundamental Rights and Directive Principles together embody a project of **"revolution through law"** — seeking gradual but far-reaching transformation through democratic institutions. The Constitution does not rely on violent upheaval; instead, it uses law, courts, legislatures, and democratic processes to build a just society.

Question 5: Describe the procedures and protocol of debate and adoption of the Indian Constitution.

Answer:

The Constituent Assembly followed a **structured process** of debate and adoption to draft the Constitution.

Rules of Procedure: The Rules of Procedure Committee (Chairman: G.V. Mavalankar) established clear rules: - **Notice requirement** — amendments had to be submitted in advance - **Clause-by-clause consideration** — the Draft was debated article by article - **Time allocation** — to prevent filibustering - **Voting** — usually by voice vote; division (roll call) only if demanded - **Quorum** — minimum members required for business

Role of the President: Dr. Rajendra Prasad, as President, acted as the Speaker — maintaining order, interpreting rules, deciding admissibility of amendments, and balancing thorough debate with forward progress.

Session Structure: The Assembly held eleven major sessions over two years, eleven months, and eighteen days. Each session followed three phases: 1. **General Discussion** — broad principles and ideology 2. **Detailed Scrutiny (Second Reading)** — article-by-article debate; over 2,500 amendments tabled 3. **Final Reading (Third Reading)** — final adoption on 26 November 1949

Debate Culture: Debates were heated but civil. Members cited global constitutions, philosophical principles, and Indian traditions. Ambedkar coined the concept of **"constitutional morality"** — the willingness to abide by constitutional methods, respect minority views, and prioritize reasoned compromise.

Public Engagement: - Debates were reported in the press - Over 7,000 public memoranda were received and considered - This created indirect accountability to national opinion

Key Debates: 1. **Federalism** — Strong Centre vs. Provincial Autonomy (outcome: strong Centre) 2. **Fundamental Rights** — "Due Process" vs. "Procedure Established by Law" (outcome: procedure established by law; later modified by Maneka Gandhi case in 1978) 3. **Language** — Hindi vs. English vs. Regional Languages (outcome: Hindi as official language, English as associate) 4. **Secularism** — "No-concern" vs. "Equal-respect" model (outcome: equal-respect model) 5. **Directive Principles** — Justiciable or Not? (outcome: non-justiciable)

Timeline: - 9 December 1946 — First sitting - 13 November 1947 — Objectives Resolution moved by Nehru - February 1948 — Initial Draft prepared - 26 November 1949 — Constitution adopted - 26 January 1950 — Constitution enforced (Republic Day)

The dates were chosen to connect the Constitution to the freedom struggle — 26 November marks the Declaration of Sovereignty (1929), and 26 January marks Poorna Swaraj Day (1930).
